Zimbabwe

Forest Act

Chapter 19:05

Legislation as at 3 December 2021

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Zimbabwe

Forest Act
Chapter 19:05

Commenced on 9 December 1949

[This is the version of this document from 3 December 2021.]

[Note: This version of the Act was revised and consolidated by the Law Development Commission of Zimbabwe. This version is up-to-date as at 31st December 2016.]

[Amended by Forest Amendment Act, 2021 (Act 4 of 2021) on 3 December 2021]

AN ACT to establish a commission for the administration, control and management of State forests, to provide for the transfer of certain assets belonging to the Government to the said Commission; to provide for the setting aside of State forests and for the protection of private forests, trees and forest produce; to establish a Mining Timber Permit Board and to control the cutting and taking of timber for mining purposes; to provide for the conservation of timber resources and the compulsory afforestation of private land; to regulate and control trade in forest produce including the use of trade names and marks in connection with forest produce; to regulate and control the burning of vegetation; and for other purposes connected with the foregoing.

Part I – Preliminary

1. Short title

This Act may be cited as the Forest Act *[Chapter 19:05]*.

2. Interpretation

In this Act—

"**appointed day**" means the 2nd February, 1979;

"**chief executive**" *[definition of "chief executive" inserted by section 2 of Act 8 of 1999 and deleted and substituted by definition of "Director-General" by section 2(a) of Act 4 of 2021]*

"**Commission**" means the Forestry Commission established under this Act;

"**commissioner**" means a person who is appointed as a member of the Commission;

"**demarcated forest**" means an area of land which has been declared to be a demarcated forest in terms of this Act;

"**Director-General**" means the person appointed in terms of subsection (1) of section twenty-seven to be the Commission's chief executive officer;

[definition of "Director-General" inserted by section 2 of Act 8 of 1999 and substituted by section 2(a) of Act 4 of 2021]

"**fireguard**" means a strip of land, whether under trees or not, which has been cleared of inflammable matter;

"**Forest Estate**" means the Forest Estate specified in section thirty-three;

"**forest land**" means forest land specified in section thirty-four;

"**forest officer**" means any person appointed by the Minister as a forest officer for the purposes of this Act;

"**forest produce**", in relation to—

(a) a demarcated forest, means anything which is grown or is found naturally therein, including any wild or domesticated animal, but excluding any mineral or mineral substance as defined in the Mines and Minerals Act *[Chapter 21:05]*;

(b) an undemarcated forest, means all trees, timber, palms and bamboos therein;

but excludes anything specified by the Minister, by statutory instrument, for the purposes of this definition;

"**local authority**" means a municipal council, town council, local board or rural district council;

"**Minister**" means the Minister of Environment and Tourism or any other Minister to whom the President may, from time to time, assign the administration of this Act;

"**occupier**", in relation to any land, means the person exercising general control over the land and, for the purposes of section sixty-seven, includes any person authorized by such an occupier to receive notice given in terms of that section;

"**plantation**" means any artificially established tree, as ordinarily understood, or forest of such trees, and includes any natural extension of such tree or trees;

"**private forest**" means a forest, plantation or tree situate on land not owned by the State;

"**private land**" means any land the ownership of which has by law, grant or title deed become vested in any person other than the President, and includes any land held by any person under any agreement whereby such person is entitled to obtain from the President title thereto on the fulfilment by him of the conditions prescribed by such agreement but does not include any Communal Land;

"**protected private forest**" means any area of land which is protected under a notice issued in terms of subsection (3) of section thirty-seven;

"**Provincial-Head**" means a Forest Officer in charge of a particular province;

[definition of "Provincial-Head" inserted by section 2(b) of Act 4 of 2021]

"**reserved tree**" means a tree which has been reserved by a notice in terms of section thirty-eight;

"**Rhodes Estates**" means the Rhodes Estates described in the Rhodes Estates Act *[Chapter 20:17]*;

"**State forest**" means any demarcated forest or any undemarcated forest;

"**timber**" means all wood contained in trees, whether standing, fallen or felled, and all wood, whether produced in or imported into Zimbabwe and whether sawn, split, hewn or planed or otherwise fashioned or processed;

"**tree**" means the whole or any part of any tree as ordinarily understood, or of any shrub, bush, seedling, transplant, sapling, re-shoot, under-bush, undergrowth or regrowth;

"**trust land**" means any land, other than Communal Land, held in trust by the President or a statutory body or by a person, whether solely or jointly with others, by virtue of his being a holder of some office in a statutory body;

"**undemarcated forest**" means any area of State land which is not a demarcated forest, but does not include—

(a) any State land held by any person under any agreement whereby such person is entitled to obtain from the President title thereto on the fulfilment by him of the conditions prescribed by such agreement;

(b) the Parks and Wild Life Estate; or

(c) Communal Land;

"**vegetation**" includes any tree, bush, shrub, brushwood, undergrowth or grass and any other vegetation.

2A. Guiding Principles

(1) The biodiversity, ecological integrity of forest areas and ecosystems must be protected, conserved and used sustainably.

(2) Plantation forests should be increased and their contribution to national and local economies should be enhanced sustainably.

(3) The many economic, environmental, social, cultural, spiritual and aesthetic functions and values of forests and woodlands need to be maintained through reduction of deforestation and accrual of benefits from forests by rural and urban communities.

(4) Planting and conserving trees on farmlands improves land productivity and provision of forest goods and services.

(5) The value of urban tree resources is multifaceted as they enhance environmental, social, economic and aesthetic values.

(6) Trade in competitive wood forest products offers potential for increased economic development through employment creation and income generation as well as export earnings but requires an enabling environment for commercial activities, incentives and investment in the wood manufacturing industry.

(7) Sustainable harvesting of non-timber forest resources for nutrition, health and income generation contributes to poverty reduction.

(8) Given the complexities and uncertainties inherent in the functioning of natural systems, sustainable management of forests needs to be flexible, adaptive and based on sound science.

(9) A knowledgeable and well-informed public on forestry issues is essential for effective forest conservation and sustainable management. In addition, indigenous knowledge and practices have valuable contributions to the sustainable use of forest resources.

(10) The role of forests and trees in climate change should be recognised, given their unique ability to contribute to both climate change adaptation and mitigation.

(11) Laws are an essential component of effective management of forest resources; therefore they should be dynamic, locally and internationally accountable and should set demands, impose duties and create obligations to society for sustainable use, management and protection of forest resources.

(12) Efficient, and coordinated institutions at community, district, provincial and national levels are key to effective forest resource conservation and management.

(13) Mainstreaming of forestry in other sectors' policies and activities in government, private, community and civil society organisations is vital for an effective forest management system.

(14) The participation multiple stakeholder, the public sector, private sector, local communities, and civil society in forest management has the potential to improve forest conservation and productivity.

(15) Inclusion of women and gender balance is vital to forest management; hence the role of women should be recognised and promoted.

(16) Commitments made at regional and multilateral forums on forests and their use should be reflected in national policies, legislation and practice to ensure sustainable forest management.

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(17) The Commission shall endeavour to provide an equal and fair opportunity in employment of all competent persons and to prohibit discrimination in employment on grounds of race, gender, ethnic background, disability and religious affiliation.

[section 2A inserted by section 3 of Act 4 of 2021]

3. Director-General may appoint Forest Officers

The Director-General may appoint any person in the employment of the Commission as a Forest Officer for the purpose of this Act.

[section 3 substituted by section 4 of Act 4 of 2021]

Part II – Forestry Commission

4. Establishment of Forestry Commission

Upon the 1st April, 1954, there shall be established a commission under the name of the Forestry Commission, which shall be a body corporate capable of suing and being sued in its corporate name and, subject to this Act, of performing all such acts as bodies corporate may by law perform.

5. Constitution of Commission and terms of office of commissioners

(1) The Commission shall consist of not less than three and not more than eight commissioners appointed by the Minister after consultation and in accordance with any directions the President may give him.

(1a) The Minister shall appoint members of the Commission as follows—

(a) a chairperson;

(b) a deputy chairperson who shall be of the opposite gender to the chairperson;

(c) a person holding a recognised qualification or demonstrable knowledge in forestry;

(d) persons recognised for their qualification, ability or experience in the following—

(i) environmental planning and management;

(ii) finance;

(iii) business and administration;

(iv) ecology;

(v) human resources;

(e) a legal practitioner registered in terms of the Legal Practitioners Act *[Chapter 27:07]*;

(f) a representative from the Ministry responsible for environment;

(g) a Chief nominated by the National Council of Chiefs.

[subsection (1a) inserted by section 5(a) of Act 4 of 2021]

(2) The commissioners shall be appointed by the Minister for a period of four (4) years.

[subsection (2) amended by section 5(b) of Act 4 of 2021]

(3) The Minister shall appoint one of the commissioners to be chairman of the Commission and may, if the chairman is prevented by illness, absence from Zimbabwe or other like cause from exercising his functions as chairman, appoint one of the other commissioners to act as chairman.

(4) If a commissioner is prevented by illness, absence from Zimbabwe or other like cause from exercising his functions on the Commission, the Minister may appoint any person to act as commissioner, and the person so appointed shall, during the period of his appointment, exercise all the powers and fulfil all the duties of the commissioner for whom he is appointed to act.

(5) A commissioner may at any time by resignation under his hand addressed to the Minister resign his membership.

(6) The Commission shall pay—

(a) to the chairman of the Commission in respect of his office as chairman, such remuneration as may be determined by the Minister;

(b) to any other commissioner in respect of his office as commissioner, such remuneration as may be determined by the Minister;

(c) to any person appointed to act as chairman or as a commissioner, the remuneration to which he is entitled under the terms of his appointment;

(d) to all commissioners, travelling and subsistence allowances in accordance with such tariff and such conditions as the Commission may from time to time fix.

(7) A commissioner who ceases to be a commissioner shall be eligible for reappointment unless he is disqualified for membership of the Commission.

(8) In appointing commissioners, the Minister shall endeavour to ensure that at least half of the membership so appointed comprises of women.

[subsection (8) inserted by section 5(c) of Act 4 of 2021]

6. Disqualification for commissioner

(1) A person shall be disqualified from being a commissioner if—

(a) he is a member of Parliament; or

(b) he holds any other office in which his duties are reasonably likely to conflict with his duties towards or the interests of the Commission; or

(c) is a member of two or more statutory bodies.

[paragraph substituted by s. 3 of Act No. 8 of 1999]

(d) *[paragraph repealed by s. 3 of Act No. 8 of 1999]*

(2) It shall be the duty of the Minister to satisfy himself that every person whom the President proposes to appoint as a commissioner is not disqualified in terms of subsection (1) and also from time to time to satisfy himself that no person who is a commissioner is so disqualified; and every such person shall, whenever requested so to do, furnish him with such information as the Minister may consider necessary for the performance of his duty under this subsection.

6A. Commissioners to disclose certain connections and interests

(1) In this section—

"relative", in relation to a commissioner, means the commissioner's spouse, child, parent, brother or sister.

(2) If—

(a) a commissioner or member of a committee—

(i) knowingly acquires or holds a direct or indirect pecuniary interest in any matter that is under consideration by the Board or the committee; or

(ii) owns any property or has a right in property or a direct or indirect pecuniary interest in a company or association of persons which results in his private interests coming or appearing to come into conflict with his functions as a commissioner or member, as the case may be; or

(iii) knows or has reason to believe that a relative of his—

(A) has acquired or holds a direct or indirect pecuniary interest in any matter that is under consideration by the Board or the committee; or

(B) owns any property or has a right in property or a direct or indirect pecuniary interest in a company or association of persons which results in the commissioner's or member's private interests coming or appearing to come into conflict with his functions as a commissioner or member, as the case may be;

or

(b) for any other reason the private interests of a commissioner or member of a committee come into conflict with his functions as a commissioner or member, as the case may be;

the commissioner or member shall forthwith disclose the fact to the Board or the committee, as the case may be.

(3) A commissioner or member referred to in subsection (2) shall take no part in the consideration or discussion of, or vote on, any question before the Commission or committee, as the case may be, which relates to any interest, property or right referred to in that subsection.

(4) Any person who contravenes subsection (2) or (3) shall be guilty of an offence and liable to a fine not exceeding level seven or to imprisonment for a period not exceeding two years or to both such fine and such imprisonment.

[section inserted by Act 8 of 1999 and amended by section 4 of Act 22 of 2001]

7. Powers of President to declare office of commissioner vacant

(1) If the Minister is satisfied that a commissioner—

(a) is disqualified for membership of the Commission; or

(b) has been absent from more than three consecutive meetings of the Commission without the permission of the Commission; or

(c) has become insolvent or made an arrangement with his creditors; or

(d) is incapacitated by physical or mental illness; or

(e) is otherwise unable or unfit to discharge the functions of a commissioner;

the Minister may declare his office as a commissioner to be vacant and shall notify the fact in such manner as he may think fit, and thereupon the office of that commissioner shall become vacant.

(2) When a commissioner's office becomes vacant or a commissioner dies, the Minister shall, in accordance with any directions the President may give him appoint a person to fill the vacancy and such person shall hold office until the expiration of the period during which such commissioner would, but for the vacancy or his death, as the case may be, have continued in office.

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8. Duties of Commission

(1) Subject to this Act, the functions of the Commission shall be—

[section amended by Act 8 of 1999]

(a) the consideration of all questions and matters arising out of or relating to general forest policy and the making of reports and recommendations thereon to the Minister;

(b) the control, management and exploitation of State forests, plantations and forest nurseries belonging to the State and such other land as may be acquired by the State for forestry purposes;

(c) the establishment, maintenance, improvement, renewal and exploitation of plantations and forest nurseries;

(c1) the exploration of al forms of forest produce, including—

(i) the manufacture of articles from forest produce and the sale and exportation of such articles; and

(ii) the production, sale and exportation of seed; and

(iii) the conduct of hunting or photographic safaris;

[paragraph inserted by Act 8 of 1999]

(d) the survey of the forest resources of Zimbabwe;

(e) advice and propaganda on all forestry matters;

(f) conducting research and investigations into all matters pertaining to forestry and forest products;

(g) the determination of whether the President should exercise any of his powers in terms of section thirty-five and to make a recommendation thereon to the President;

(h) the investigation of any matter relating to the use or occupation of the Forest Estate and the making of recommendations thereon to the President where it considers such use or occupation is inconsistent with this Act;

(h1) the serving of orders on any persons requiring such persons to undertake or adopt such measures as are specified in the orders to protect the forest.

[paragraph (h1) inserted by section 6 of Act 4 of 2021]

(i) carrying out such activities as the Minister may specify as a service to the public on behalf of the State;

[paragraph inserted by Act 8 of 1999]

and with such other duties relating to forestry as the Minister may from time to time direct.

(2) The Commission may and, if so directed by the Minister, shall exercise any function referred to in paragraph (b), (c) or (c1) of subsection (1) through a company or undertaking referred to in paragraph 1A of the Second Schedule.

[subsection inserted by Act 8 of 1999]

9. Recommendation as to declaration of demarcated forest

The Commission shall not recommend to the President that he exercise his power to declare any land demarcated forest where the recommendation relates to land which is—

(a) parks and wild life land, unless the Parks and Wild Life Board established in terms of the Parks and Wild Life Act *[Chapter 20:14]* has been consulted;

(b) Communal Land, unless the Minister responsible for the administration of the Communal Land Act *[Chapter 20:04]*, and any rural district council established for the area concerned have been consulted;

(c) within the area under the jurisdiction of a local authority, unless the local authority has been consulted.

10. Recommendations as to improper use of Forest Estate

Where any recommendation has been made to him in terms of paragraph (h) of section eight the President may—

(a) direct any Minister to take such action as may be necessary to comply with the recommendation of the Commission; or

(b) reject the recommendation and, in such event, the reasons therefor shall be communicated in writing to the Commission.

11. Powers of Commission

For the better exercise of its functions, the Commission shall, subject to this Act, have power to do or cause to be done, either by itself or through its agents, all or any of the things specified in the Second Schedule, either absolutely or conditionally and either solely or jointly with others.

[section amended by Act 8 of 1999]

12. Commission to be subject to direction of Minister

The Commission shall, in exercising its powers under this Act, comply with such directions as may be given to it from time to time by the Minister.

[section amended by Act 8 of 1999]

13. Transfer to Commission of undertaking of Forestry Branch

(1) As from the 1st April, 1954, the undertaking of the Forestry Branch of the Department of Agriculture shall by virtue and subject to this Act be transferred to and vest in the Commission.

(2) The transfer effected by subsection (1) shall extend to—

(a) all forest produce in State forests and on other State land administered by the Forestry Branch;

(b) such buildings occupied by the Forestry Branch as the Minister may determine;

(c) all saw-mills, plant, vehicles, equipment, tools, gear, livestock, wells, boreholes and other water supplies belonging to the State and used by the Forestry Branch:

Provided that no State land shall be transferred to the Commission by virtue of this section.

(3) A valuation shall be made by the Minister of the undertaking transferred in terms of this section and the sum represented by such valuation, hereinafter referred to as "initial capital", shall be a debt due by the Commission to the State.

14. Transfer of certain land to Commission

(1) Such State land, not being demarcated forest, as is designated by the Minister for the purposes of this section shall be transferred, with effect from a date fixed by the Minister, to the Commission.

(2) The Registrar of Deeds shall, where so directed by the Minister, make such endorsements on the appropriate title deeds and in his registers as may be required by reason of the transfer to the Commission of the land referred to in subsection (1), and all such transfers shall be exempt from stamp duty, fees of office and other such charges.

15. Control and management of demarcated forests

(1) Subject to subsection (2), the Commission shall have the control and management of—

(a) demarcated forests; and

(b) all land expropriated in terms of section forty; and

(c) any other State land designated by the Minister for the purposes of this paragraph.

(2) The Commission shall have the control and management of any demarcated forest which is part of the Rhodes Estates only in so far as such demarcated forest has been leased to the Commission and only in so far as such control and management is consistent with the lease.

16. Property of Commission

The Commission—

(a) shall own—

(i) all immovable property designated by the Minister in terms of subsection (1) of section fourteen and any other immovable property the ownership of which is acquired by the Commission; and

(ii) all movable assets transferred to the Commission in terms of section thirteen and all other movable property the ownership of which is acquired by the Commission; and

(iii) any forest produce obtained from a demarcated forest or other land referred to in paragraph (b) or (c) of section fifteen which is not immovable property;

and

(b) may exercise, subject to subsection (2) of section fifteen, the rights of ownership, other than the right of alienation of ownership, in respect of any demarcated forest or other land referred to in paragraph (b) or (c) of section fifteen.

17. Lease of demarcated forest

(1) The Commission may lease any portion of a demarcated forest with the approval of the Minister.

[subsection (1) substituted by section 7(a) of Act 4 of 2021]

(2) *[subsection (2) repealed by section 7(b) of Act 4 of 2021]*

18. Contracts

Any reference to the Minister, the conservator or the Forestry Branch of the Department of Agriculture in any agreement relating to forest produce between the State and any other person or in any licence relating to forest produce granted by the State to any person shall, on or after the 1st April, 1954, be read and construed as a refe rence to the Commission or its chief executive officer appointed in terms of this Act, as the context may require.

19. Financial year and programme of Commission

(1) The financial year of the Commission shall be the period of twelve months ending on the 31st December in each year.

(2) Before the end of each financial year, the Commission shall submit a programme to the Minister, in such form as the Minister may require, setting out in detail the projected revenue and expenditure for each of the succeeding four years

[section substituted by Act 8 of 1999]

20. Commission to open banking account

The Commission shall open an account or accounts in its name at a bank or banks into which all moneys received by the Commission shall be paid in the first instance and out of which all payments by the Commission shall be made.

21. The Funds of the Commission

The Funds of the Commission shall consist of—

(a) any money that may be payable to the Commission from moneys appropriated for the purpose by Act of Parliament; and

(b) any loans, donations and grants made to the Commission by any person or Agency or by any Government of any country; and

(c) any fees or charges in respect of any service rendered by the Commission or received by the Commission in terms of this Act; and

(d) any other moneys that may accrue to the Commission, within the course of its operations or otherwise.

[section 21 amended by Act 8 of 1999 and substituted by section 8 of Act 4 of 2021]

22. Forestry Reserve Fund

(1) As soon as there is a surplus in the funds of the Commission, the Commission shall establish a fund to be known as the Forestry Reserve Fund into which shall be paid an amount equal to three-fifths of any annual surplus as revealed by the Commission's annual audited accounts.

(2) Surplus moneys in the Forestry Reserve Fund, which are not immediately required for any purpose for which moneys in that Fund may under this Act be applied, may be held in investments approved by the Minister after consultation with the Minister responsible for finance.

(3) The balance of any surplus remaining after the payment referred to in subsection (1) has been made and the interest received on investments made in terms of subsection (2) shall be appropriated in the following order, that is to say—

(a) in reduction of advances and loans made to the Commission;

(b) in redemption of the initial capital of the Commission;

(c) to the credit of the Consolidated Revenue Fund.

(4) *[subsection repealed by Act 8 of 1999]*

23. Interest on advances

The Commission shall, if the Minister responsible for finance so directs, pay interest to the State on the outstanding balances of the initial capital of the Commission and of the advances made to it under subsection (1) of section twenty-one at such rate as may be fixed by the Minister responsible for finance.

24. Exemption from income tax

The receipts and accruals of the Commission shall be exempt from income tax imposed under any enactment.

25. Accounts and audit

(1) The Commission shall keep proper accounts and other records relating thereto in respect of all its operations, undertakings and property, including such particular accounts and records as the Minister may direct

[subsection substituted by Act 8 of 1999]

(2) The accounts of the Commission shall be audited by an auditor appointed annually by the Commission with the approval of the Minister.

(3) The auditor appointed in terms of subsection (2) may be—

(a) the Auditor-General; or

[paragraph (a) amended by section 9 of Act 4 of 2021]

(b) a person registered as public auditor in terms of the Public Accountants and Auditors Act *[Chapter 27:12]*.

(4) The auditor appointed in terms of subsection (2) shall make a report to the Commission on the accounts examined by him and on the statement of accounts prepared for the financial year for which he is appointed, and the report shall include a statement showing—

(a) whether or not he has obtained all the information and explanations he has required; and

(b) whether or not, in his opinion, such statement of accounts is properly drawn up so as to exhibit a true and fair view of the state of affairs of the Commission according to the best of his information and the explanations given to him and as shown by the books of the Commission.

(5) The auditor appointed in terms of subsection (2) shall have a right of access at all times to the books, accounts and vouchers of the Commission and shall be entitled to require from the members and employees of the Commission such information and explanations as may be necessary for the performance of his duties.

(6) As soon as the accounts of the Commission have been audited, the Commission shall send the statement of its accounts required in terms of this section to the Minister, together with a copy of any report made on that statement by the auditor concerned.

25A. Reports of Commission

(1) In addition to any annual report which the Commission may be required to submit to the Minister in terms of the Audit and Exchequer Act *[Chapter 22:03]*, the Commission—

(a) shall submit to the Minister such other reports as the Minister may require;

(b) may submit to the Minister such other reports as the Commission considers advisable;

in regard to the operations, undertakings and property of the Commission.

(2) The Commission shall give to the Minister all such information relating to the undertakings of the Commission as the Minister may at any time require.

(3) The Minister shall lay a report submitted to him by the Commission in terms of subsection (1) before Parliament

26. Procedure

(1) The quorum of the Commission shall be two commissioners when the number of commissioners appointed is three or four, and not less than half the number of commissioners when the number of commissioners appointed exceeds four.

(2) The Commission shall hold a meeting—

(a) at least once every quarter; and

(b) a special meeting as and when circumstances require.

[subsection (2) substituted by section 10 of Act 4 of 2021]

(3) The chairman shall preside at all meetings at which he is present and in his absence from any meeting, unless an acting chairman has been appointed, the commissioners shall elect one of their number to act as chairman at that meeting.

(4) The chairman shall have a deliberative vote as well as a casting vote.

(5) If the Commission makes a decision on any matter on or in connection with which it has received from its chief executive officer appointed in terms of this Act advice of a technical nature, involving special knowledge and experience of forestry, and such decision is not in accordance with such advice, the Commission shall report the matter to the Minister, and the decision of the Minister shall be accepted by the Commission.

(6) The Commission may, with the approval of the Minister, make rules with respect to the holding of meetings of the Commission, the notices to be given of such meetings, the proceedings thereat, the keeping of minutes of such proceedings and the custody and production for inspection of such minutes.

(7) Subject to any such rules, the procedure of the Commission shall be such as the Commission may determine.

27. Appointment and functions of chief executive officer of Commission

(1) Subject to this section, the Commission shall appoint, on such terms and conditions as the Commission may fix, a person to be the chief executive officer of the Commission and at least one person to be the deputy of the chief executive officer.

(2) The chief executive and his deputy shall be appointed for their knowledge and experience of forestry.

(3) Without the authority of the Minister, no person shall be appointed as chief executive and no person shall be qualified to hold office as chief executive if he is not a citizen of Zimbabwe or ordinarily resident in Zimbabwe.

(4) The appointment of the chief executive shall terminate if he would be required in terms of section six to vacate his office had that section applied to him.

(5) The chief executive shall be responsible, subject to the Commission's control, for—

(a) supervising and managing the Commission's staff activities, funds and property; and

(b) performing such other functions as the Commission may assign to him or as may be conferred or imposed on him by or under this Act or any other enactment.

(6) An assignment of functions by the Commission in terms of subsection (5)—

(a) may be made generally or specially and subject to such conditions, restrictions, reservations and exceptions as the Commission may determine;

(b) may be revoked by the Commission at any time;

(c) shall not preclude the Commission itself from exercising the functions.

(7) The deputy of the chief executive shall perform the chief executive's functions whenever the office of chief executive is vacant or the chief executive is for any reason unable to perform them.

(8) In appointing the Director-General and any deputy, the Commission shall endeavour to ensure that the Director-General and the deputy are persons of the opposite gender.

[subsection (8) inserted by section 11 of Act 4 of 2021]

[section substituted by Act 8 of 1999]

27A. Other staff of Commission

(1) The Commission shall appoint, on such terms and conditions as it may fix, such other members of staff as the Commission considers to be necessary for the proper exercise of the Commission's functions.

(2) No person seconded to the Commission from the Public Service may be discharged except with the consent of the Public Service Commission.

(3) The First Schedule shall apply to any employee of the Commission who is not on secondment from the Public Service.

(4) In appointing members of staff, the Commission shall endeavour to ensure equitable gender distribution.

[subsection (4) inserted by section 12 of Act 4 of 2021]

[section substituted by Act 8 of 1999]

28. Pension contributions to be deducted

Any contributions for pension purposes which are payable to the Consolidated Revenue Fund in terms of this Act by an employee of the Commission, whether on secondment from the Public Service or otherwise, shall be deducted from the emoluments of the employee concerned and forwarded by the Commission to the State.

29. Commission to contribute to Consolidated Revenue Fund

There shall be paid monthly out of the funds of the Commission to the Consolidated Revenue Fund such amount as may be determined by the Minister responsible for finance, after consultation with the Commission, in respect of the contributions for pension purposes paid to the Consolidated Revenue Fund by employees of the Commission.

30. Disability benefits

(1) Any enactment providing for the payment of compensation in respect of the injury or death of officers or employees of the Public Service shall apply, *mutatis mutandis*, in relation to contributors as though they were officers or employees of the Public Service.

(2) The Minister responsible for finance may recover from the Commission any compensation paid to a contributor or his dependants in terms of subsection (1).

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(3) A contributor shall not be regarded as a workman for the purposes of the National Social Security Authority Act *[Chapter 17:04]*.

(4) In this section—

"contributor" means an employee of the Commission who is paying contributions to the Consolidated Revenue Fund in terms of this Act, whether he is on secondment from the Public Service or otherwise.

31. Suspension, reduction or forfeiture of pension or gratuity

If any employee or former employee of the Commission who becomes entitled to a pension or gratuity or is in receipt of a pension under this Act—

(a) is found by a board appointed by the President for the purpose to have made improper use of or to have disclosed in an improper manner any information which he may have obtained in the course of his employment; or

(b) is found by a competent court to have been guilty of misappropriation of property of the Commission which would, if it had been discovered before he became entitled to a pension or gratuity, have rendered him liable to discharge or dismissal; or

(c) is found to have made a false statement for the purpose of obtaining a pension or gratuity or commutation of pension, knowing the statement to be false or not believing it to be true; or

(d) refuses to comply with a reasonable request made by the Commission to afford all assistance and information in his power relating to any appointment formerly held or class of duty formerly carried out by him; or

(e) solicits or, without the consent of the Commission, accepts, directly or indirectly, any gift of a pecuniary value after retirement in connection with his service;

the President may order that any right to any pension or gratuity to which that person has become entitled or the pension of which he is in receipt shall be suspended, reduced or forfeited.

32. Deduction from pension, gratuity, refund of contributions or other benefit

(1) The Minister responsible for finance may authorize the deduction from any pension, gratuity, refund of contributions, commutation of pension or other benefit payable under this Act to an employee of the Commission who has been discharged or dismissed for misconduct of an amount equal to any direct loss which the Commission has sustained by reason of the conduct of the employee on account of which the employee was discharged or dismissed from the service of the Commission.

(2) The Minister may authorize the deduction from any pension, gratuity, refund of contributions or other benefit to which a person or his estate is entitled under this Act of a liquidated amount which that person is liable to pay to the Commission.

(3) To facilitate the recovery of an amount due under this section, the Minister may order the commutation, in accordance with any enactment relating to the commutation of pensions payable to members of the Public Service, of all or part of the pensions payable to the member notwithstanding anything to the contrary contained in this Act.

Part III – Forest Estate and forest land

33. Forest Estate

(1) The Forest Estate shall consist of—

(a) forest land;

(b) demarcated forest on Rhodes Estates;

(c) land owned by the Commission specified in Part III of the Third Schedule.

(2) The Forest Estate shall be used for the purposes specified in this Act.

34. Forest land

(1) Forest land shall consist of State land which is declared to be a demarcated forest.

(2) The total extent of forest land shall not be reduced by more than one *per centum* of the total extent of forest land on the appointed day.

Part IV – Demarcated forests, nature reserves, private protected forests, reserved and protected trees

35. Demarcated forest

(1) Each of the areas described in Parts I and II of the Third Schedule is hereby declared to be a demarcated forest which shall be known by the name specified in the Third Schedule.

(2) Subject to this Act, the President may, on the recommendation of the Commission, by notice in a statutory instrument, amend the Third Schedule for the purpose of—

(a) declaring a new demarcated forest and specifying the name thereof;

(b) changing the name of any demarcated forest;

(c) adding any area to a demarcated forest;

(d) subtracting any area from a demarcated forest;

(e) abolishing any demarcated forest.

(3) No land shall be declared to be demarcated forest unless it is—

(a) State land; or

(b) trust land and the trustees thereof have consented thereto.

(4) Any notice made in terms of paragraph (a), (b) or (c) of subsection (2) shall be laid before Parliament as soon as may be after it has been published and if a resolution is passed within the next twenty-eight days on which Parliament has sat next after the notice is laid before it requesting the President to rescind or vary the notice, it shall forthwith be rescinded or varied, as the case may be, by further statutory instrument but without prejudice to the validity of anything previously done thereunder.

(5) No notice may be made in terms of paragraph (d) or (e) of subsection (2) unless the proposal to make such notice has been approved by Parliament.

36. Minister may amend Third Schedule

(1) The Minister may, by notice in a statutory instrument, amend the Third Schedule in order to—

(a) more clearly describe such land; or

(b) correct any error in the description of or statement of extent of such land.

(2) The Minister may, by statutory instrument, amend Part III of the Third Schedule in order to add any land which is acquired by the Commission or delete any land which is no longer owned by the Commission.

(3) No notice made in terms of this section shall have the effect of transferring any land to or from the Forest Estate.

37. Owner of private land may apply for protection of forest

(1) The owner of any private land who has placed or intends to place such land or any portion of such land under a system of forest management approved by the Commission may make application to the Minister for a declaration that such land or such portion of such land shall be protected under this Act.

(2) Upon receipt of an application in terms of subsection (1), the Minister shall require the Commission —

(a) to submit a report on the area to which the application relates and to cause a sketch plan to be produced together with a written description, approved by the Surveyor-General, of the boundaries of such area;

(b) to cause a certified copy of such report, together with a copy of the plan attached thereto, to be deposited in the office of the local authority for the area and of the mining commissioner in whose district the area issituate. Such report and plan shall be available at such office during office hours for inspection by members of the public, free of charge;

(c) to cause—

(i) in the case of an indigenous forest, three months' notice; or

(ii) in the case of a plantation, whether already established at the date of the application or to be established thereafter, one month's notice;

of the intention to declare such area to be protected under this Act to be published on three consecutive occasions in the *Gazette* and in a newspaper circulating in the district in which the area is situate and to call upon any person who has any objection to the proposed declaration to lodge his objection in writing with the Minister within three months or one month, as the case may be, of the last publication of the notice in terms of this paragraph.

(3) The Minister after consideration of the application and objections, if any, may, if he is satisfied that the public interest will not be prejudiced thereby, by statutory instrument, declare that the area of private land described in such notice shall be protected under this Act.

(4) The Minister may at any time revoke any declaration issued in terms of this section if he is satisfied that the private land to which it relates is no longer under a system of forest management approved by the Commission or if the owner so requests.

38. Reservation of trees or forest produce

The Minister may, in respect of any State forest, by statutory instrument, declare any species of tree or any forest produce to be specially reserved and may in like manner revoke or amend any such declaration.

39. Protection of forest or trees from cutting

(1) Whenever, in respect of any land not being a State forest, the President deems it expedient in the public interest that any tree or the whole or any part of a forest or plantation shall be protected, the President may, by proclamation, declare such tree or such forest, part of a forest or plantation to be protected.

(2) The owner of any forest, plantation or tree in respect of which the President has exercised his power under subsection (1) shall be entitled to compensation for any loss resulting therefrom in such sum as may be mutually agreed upon or, failing agreement, as may be determined by arbitration.

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40. Expropriation of land for forest and certain other purposes

Whenever, in the opinion of the President, any area of land is required for the production of forest produce, either by the conservation and management of forest produce existing on such land or by means of plantations, the President may expropriate such land on payment to the owner of the land of such sum as may be mutually agreed upon or, failing agreement, as may be fixed by arbitration:

Provided that the power of expropriation conferred by this section may only be exercised if the expropriation is recommended by the Environment Board established in terms of section 19 of the Environmental Management Act *[Chapter 20:27]*.

[section amended by section 142 of Act 13 of 2002]

41. Certain acts prohibited

(1) Unless authorized in terms of subsection (3) or (4) of section forty-four, no person shall—

(a) cut, fell, injure or destroy any forest produce in, or remove any forest produce from, any demarcated forest or protected private forest; or

(b) fell, remove or injure any tree or forest produce which is reserved in terms of section thirty-eight; or

(c) cut, injure or destroy any tree protected or any tree in any forest or plantation or part of any forest or planttion protected in terms of section thirty-nine except with the written consent of the Minister and subject to such conditions as he may determine.

(2) Any person who contravenes subsection (1) shall be guilty of an offence and liable to a fine not exceeding level eight or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

[subsection inserted by section 4 of Act 22 of 2001]

42. Acts excepted from section 41

Nothing in section forty-one shall be deemed to prohibit—

(a) the owner of a protected private forest from exercising full rights of ownership in regard to such protected private forest;

(b) any act done with the permission or under the direction of the Commission;

(c) any act done in accordance with regulations.

Part V – Control of mining timber rights: Mining Timber Permit Board

43. Interpretation in Part V

In this Part—

"**Board**" means the Mining Timber Permit Board established by section forty-six;

"**miner**" means—

(a) the holder of an exclusive prospecting order under; or

(b) the holder of a registered mining location under; or

(c) any miner as defined in;

the Mines and Minerals Act *[Chapter 21:05]*;

"**permit**" means a mining timber permit referred to in subsection (1) of section forty-five;

"**prospector**" means—

(a) the holder of a prospecting licence; or

(b) the holder of a special grant to carry out prospecting operations;

issued under the Mines and Minerals Act *[Chapter 21:05]*.

44. Exercise of rights to timber under mining law restricted

(1) No right to timber which is conferred upon a prospector under the mining law or under any title to land shall be exercised—

(a) in any demarcated forest or protected private forest; or

(b) in respect of any tree or forest produce which has been reserved under section thirty-eight or any tree, forest, plantation or part of any forest or plantation which has been protected under the provisions of section thirty-nine.

(2) Any right to timber which is conferred upon a miner under the mining law or under any title to land may be exercised only if such miner obtains a permit under the provisions of this Part:

Provided that no such right shall be exercised—

(a) in any demarcated forest or protected private forest; or

(b) in respect of any tree or forest produce which has been reserved under section thirty-eight or any tree, forest, plantation or part of any forest or plantation which has been protected under section thirty-nine.

(3) Notwithstanding the provisions of subsections (1) and (2), the mining commissioner may, after consultation with the owner of a protected private forest, authorize a prospector or miner to cut or fell any vegetation in such protected private forest if such vegetation interferes with prospecting or mining operations, development work or the erection of buildings for mining purposes:

Provided that the prospector or miner shall comply with any requirement imposed by the mining commissioner as to the stacking or piling of any vegetation so cut or felled.

(4) Notwithstanding subsections (1) and (2), the commissioner may authorize a prospector or miner to cut, fell, use, stack or remove any forest produce in a demarcated forest if such forest produce interferes with prospecting or mining operations, development work or the erection of buildings for mining purposes.

45. No miner may cut timber without permit

(1) Subject to this section and notwithstanding any other law or of any title to land no miner shall cut, fell, injure or destroy—

(a) any forest produce in or remove any forest produce from any State land; or

(b) any indigenous trees or timber in or remove any indigenous trees or timber from private land;

unless he is in possession of a valid mining timber permit issued to him by the Board.

(2) Subsection (1) shall not apply to a miner in respect of any road-building or site-clearing operations or marking of boundary lines connected with his location, unless the Board has withdrawn this exemption on the ground that the miner is cutting, felling or removing forest produce, trees or timber in such manner as is resulting in undue damage to the locality concerned:

Provided that any forest produce, trees or timber cut or felled during such road-building or site-clearing operations or marking of boundary lines shall be stacked or piled.

(3) Nothing in subsection (1) shall be construed as requiring miner to be in possession of a permit in respect of the cutting, felling, removal or use of anything covered by an agreement made in terms of subsection (8) of section 103 or subsection (3) of section 178 of the Mines and Minerals Act *[Chapter 21:05]*.

46. Establishment and constitution of Mining Timber Permit Board

(1) As from the 9th December, 1949, there shall be established a Mining Timber Permit Board.

(2) The Board shall consist of five members appointed by the Minister, of whom—

(a) one shall be a forest officer nominated by the Commission, who shall be chairman;

(b) one shall be a senior officer in the Public Service who is responsible to the Minister for the time being administering the Mines and Minerals Act *[Chapter 21:05]*;

(c) one shall be the Director-General of Environmental Management referred to in section 46 of the Environmental Management Act *[Chapter 20:27]*;

[paragraph substituted by section 142 of Act 13 of 2002]

(d) one shall be chosen by the Minister from a panel of names of persons resident in Zimbabwe submitted by the Chamber of Mines of Zimbabwe;

(e) one shall be chosen by the Minister from a panel of names of persons resident in Zimbabwe submitted by such agricultural farming unions or associations as the Minister in his discretion may determine.

(3) The members of the Board who are members of the Public Service shall hold office at the Minister's pleasure and each of the other members shall hold office for a period not exceeding three years from the date of appointment, but shall be eligible for reappointment.

47. Meetings of Board

The Board shall at least once every three months hold an ordinary meeting for the consideration of applications for permits. The day and place of each ordinary meeting and the districts from which applications will be considered at such meeting shall be as appointed by the Board. The chairman may for good and sufficient reason on any particular occasion appoint a day and place for holding a special meeting. Due notice of all ordinary meetings shall be published in the *Gazette*. The chairman shall, in the event of an equality of votes, have a casting vote in addition to a deliberative vote. A quorum for any meeting shall consist of the chairman and two members.

48. Minutes of proceedings to be kept by Board

The Board shall keep minutes of its proceedings in a book kept for that purpose which shall be signed by the chairman after confirmation at the next subsequentmeeting. Such minutes shall be open at all convenient times for the inspection of the Minister or any person authorized by him.

49. Applications for permits

(1) Any miner who wishes to cut, fell, take, work or remove any—

(a) forest produce from any undemarcated forest; or

(b) indigenous trees or timber from private land other than land within a protected private forest;

under a permit shall make application therefor or for renewal thereof on the prescribed form, in triplicate, to the mining commissioner of the district in which he intends to carry out mining operations.

(2) On receipt of an application in terms of subsection (1), the mining commissioner shall—

(a) by registered letter addressed to the ordinary postal address of the person concerned, transmit one copy of the application—

(i) where the land concerned is State land, to the Minister responsible for lands;

(ii) where the land concerned is private land, to the owner or occupier thereof;

and inform him of his right to make representations to the Board in terms of subsection (3);

(b) transmit the application to the Board together with notification of the date on which the copy referred to in paragraph (a) was posted and any comments he may wish to make regarding the application.

(3) Any person to whom a copy of an application is required to be transmitted in terms of paragraph (a) of subsection (2) may, within the period of fourteen days from the date on which such copy was posted to him by the mining commissioner, make representations to the Board regarding the application.

(4) On receipt of an application transmitted to the Board in terms of subsection (2), the chairman of the Board may issue a provisional permit which shall be valid until the application has been decided by the Board and shall, during its currency, be deemed to be a permit issued by the Board:

Provided that no provisional permit may be issued—

(a) until the period referred to in subsection (3) has expired; or

(b) if an objection to the granting of the application has been made to the Board in terms of subsection (3).

(5) An applicant or person who has made representations regarding an application in terms of subsection (3) shall furnish the Board with such further information as the Board may require.

50. Consideration of applications and issue of permits by board

(1) The Board shall consider any application at its next meeting which has been appointed for consideration of applications from that district and on such consideration may either grant or refuse the permit or renewal applied for:

Provided that the Board may for any good and sufficient reason postpone or adjourn the further consideration of any application.

(2) The Board may only refuse to issue or renew a permit if, in the opinion of the Board—

(a) the taking of timber would result in undue damage to the locality from which the applicant proposes to take timber or would adversely affect the timber supplies of that locality or Zimbabwe as a whole; or

(b) suitable alternative supplies of timber are available to the applicant.

(3) In granting any permit or any renewal thereof the Board may impose any conditions which it may deem desirable in regard to the following matters—

(a) the period for which the permit shall be valid;

(b) the place from which the timber may or may not be taken;

(c) the quantity and class of timber which may be taken;

(d) the manner in which the timber shall be cut;

(e) the method and route by which the timber shall be removed;

(f) the stacking and disposal of timber felled but not taken;

(g) the mine or mines which may use the timber;

(h) the size and species of tree which may be felled.

51. Powers of board

(1) The Board shall have power—

(a) to suspend or cancel any permit if it appears to the Board that any of the conditions imposed in the grant of the permit or renewal thereof are not being observed; and

(b) to instruct any authorized officer to examine any place from which timber is being taken under and by virtue of a permit and to report to the Board thereon; and

(c) to take evidence on oath and make such other necessary investigations as it may deem fit in assisting it to come to a decision regarding the issue, suspension, cancellation or refusal of a permit and for that purpose the chairman shall have power to administer oaths.

(2) Any person who, after having been duly sworn, wilfully gives false evidence before the Board on any matter relevant to the inquiry before it, knowing such evidence to be false or not knowing or believing it to be true, shall be guilty of an offence and liable to a fine not exceeding level seven or to imprisonment for a period not exceeding two years or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001.]

52. Period of validity of permits

Every permit issued by the Board shall, unless duly suspended or cancelled, remain in force for the period stated in the permit and may be renewed from time to time by the Board for such further periods as the Board may determine.

53. Appeals from decisions of Board

(1) Any miner who is aggrieved by the refusal of the Board to issue or renew a permit or by the suspension or cancellation of the permit may, within thirty days of such refusal, suspension or cancellation, appeal in writing to the President.

(2) Upon any such appeal the Minister may require the Board to furnish him with the reasons for its action and a copy of the evidence, if any, upon which such reasons are based.

(3) The President may, after due consideration, make such order in the matter as he may deem fit and the Board shall comply with any such order.

Part VI – Conservation of timber resources

54. Interpretation in Part VI

In this Part—

"**conservation committee**" *[definition repealed by section 142 of Act 13 of 2002]*

"**environment committee**" means an environment committee appointed in terms of section 61 of the Rural District Councils Act *[Chapter 29:13]*;

[definition inserted by section 142 of Act 13 of 2002]

"**sale**" includes barter and exchange;

"**sustained yield**" means the constant or nearly constant quantity of indigenous timber that may be cut or removed over specified periods of time from an indigenous forest on private land, as assessed by the chief executive officer or any employee of the Commission designated by him for this purpose, whilst ensuring the continued existence of that forest on the private land concerned.

55. Owner or occupier of private land shall give notice of intention to dispose of indigenous timber

(1) Any owner or occupier of private land who desires to cut or remove indigenous timber on that land for sale or for use in the manufacture of any product or who enters into any agreement for the cutting or removal of indigenous timber on that land shall, not less than fourteen days before any such timber is cut or removed, give written notice thereof in accordance with subsection (2) to the Commission which shall, before the expiration of the said period, cause the Minister and such other persons as the Minister may specify to be informed, in writing, of the contents of such notice.

(2) Any notice given in terms of subsection (1) shall specify—

(a) the locality of the land concerned stating, where applicable, the name or title-deed description of the farm; and

(b) the name of the district in which the land concerned is situated; and

[paragraph amended by section 142 of Act 13 of 2002]

(c) the date on which it is intended to commence the cutting or removal of the indigenous timber.

(d) after satisfying the above, the Commission shall carry out an inspection of the private land concerned.

[paragraph (d) inserted by section 13 of Act 4 of 2021]

(3) An owner or occupier of private land who has given notice in terms of subsection (1) shall not, more than one year after the date specified in terms of subsection (2)—

(a) cut or remove indigenous timber on that land for any of the purposes specified in subsection (1); or

(b) permit any person with whom he has entered into an agreement referred to in subsection (1) to cut or remove indigenous timber on that land:

unless he has given further notice in accordance with subsection (1) containing such of the particulars specified in subsection (2) as may be appropriate in the circumstances, and thereafter he shall give such notice annually for so long as the cutting or removal of indigenous timber continues on that land.

(4) An owner or occupier of private land who cuts or removes or permits the cutting or removal of indigenous timber on that land without giving the notice required by subsection (1) or (3) shall be guilty of an offence and liable to a fine not exceeding level six or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

(5) In this section—

"indigenous timber" includes indigenous palms and indigenous bamboos.

56. Minister may give orders restricting cutting or removal of indigenous timber

(1) Subject to this section, where the Minister is of the opinion that the cutting or removal of any indigenous timber for sale or for use in the manufacture of any product is taking place on private land in such a manner or in such quantity as to be likely to be injurious to the sustained yield of indigenous timber on that land, he may, after consultation with the Natural Resources Board and the conservation committee concerned, by notice in the *Gazette*, restrict such cutting or removal on that land to such extent as may be specified in the notice.

(2) A notice made in terms of subsection (1) shall not apply to the cutting or removal of indigenous timber—

(a) which is authorized in terms of a valid mining timber permit issued in terms of Part IV; or

(b) where the indigenous timber is being cut and stumped in the course of preparing land for cultivation, tree planting or improved grazing, the construction of a fireguard, road, building or other development or the extraction of gravel, sand, stone or other materials.

(3) The Minister shall not make a notice in terms of subsection (1) unless the occupier or, if there is no occupier, the owner of the land concerned has been notified of the proposal to make the notice and has been afforded a reasonable opportunity to make representations in relation thereto.

(4) The Minister may, by notice in the *Gazette*, amend or revoke a notice made in terms of subsection (1).

(5) The Minister shall cause a copy of any notice made in terms of subsection (1) or (4) to be served on the occupier or, if there is no occupier, the owner of the land concerned.

(6) Any person who fails to comply with a notice made in terms of subsection (1) shall be guilty of an offence and liable to a fine not exceeding level twelve or to imprisonment for a period not exceeding four years or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

57. Powers of entry and investigation of conservation committees and Natural Resources Board

(1) Any member of an environment committee on the authority of that committee, or any other person appointed by such committee for the purpose, may—

(a) after giving reasonable notice to the occupier of private land within the area of the rural district council concerned or, if there is no such occupier, to the owner thereof, enter upon such land for the purpose of investigating and reporting on indigenous timber on that land:

Provided that the provisions of this paragraph shall not authorize the entry of any dwelling house without the consent of the occupier thereof;

(b) require the occupier of private land within the area of the rural district council concerned or, if there is no such occupier, the owner thereof, to answer any question relating to the indigenous timber on his land:

Provided that no person shall be required to answer any question put to him in terms of this paragraph if he would be entitled to decline to answer that question were he a witness giving evidence in a court of law.

[subsection amended by section 142 of Act 13 of 2002]

(2) The Secretary as defined in section 2 of the Environmental Management Act *[Chapter 20:27]*, or any other person appointed by him for the purpose, may exercise the powers conferred by subsection (1) upon a member of an environment committee in respect of any private land in Zimbabwe.

[section substituted by section 142 of Act 13 of 2002]

(3) Any person who—

(a) hinders or obstructs a member of an environment committee or the Secretary referred to in subsection (2), or any person appointed by such a committee or that Secretary, as the case may be in the exercise of the powers conferred upon him in terms of this Part; or

[paragraph amended by section 142 of Act 13 of 2002]

(b) fails to answer or gives an answer which he knows to be false or which he does not reasonably believe to be true to any question he may be required to answer in terms of this section;

shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

58. Conservation committee may temporarily restrict cutting or removal of indigenous timber

(1) Subject to subsection (2), where an environmental committee is of the opinion that on any private land within its area cutting or removal of indigenous timber for sale, or for use in the manufacture of any product, is taking place in such manner or in such quantity as to be likely to be injurious to the sustained yield of indigenous timber on that land, it may serve notice in writing on the occupier or, if there is no such occupier, the owner of the land that—

(a) it proposes to recommend to the Secretary as defined in section 2 of the Environmental Management Act *[Chapter 20:27]* that measures be taken in terms of subsection (1) of section fifty-six to restrict the cutting or removal of indigenous timber on such land; and

(b) it prohibits, for a period not exceeding fourteen days from the date when the notice is served, the cutting or removal of indigenous timber on the land concerned.

[subsection amended by section 142 of Act 13 of 2002]

(2) A notice made in terms of subsection (1) shall not apply to the cutting or removal of indigenous timber—

(a) which is authorized in terms of a valid mining timber permit issued in terms of Part III; or

(b) where the indigenous timber is being cut and stumped in the course of preparing land for cultivation, tree planting or improved grazing, the construction of a fireguard, road, building or other development or the extraction of gravel, sand, stone or other materials.

(3) If so directed by the Secretary referred to in paragraph (a) of subsection (1), an environment committee shall, by notice in writing served on the occupier or, if there is no such occupier, the owner of the land concerned, extend the period of any prohibition on the land concerned in terms of paragraph (b) of subsection (1) for a further period not exceeding fourteen days.

[subsection amended by section 142 of Act 13 of 2002]

(4) Any person who cuts or removes any indigenous timber on any land in contravention of any notice made in terms of subsection (1) or (3) shall be guilty of an offence and liable to a fine not exceeding level ten or to imprisonment for a period not exceeding two years or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

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59. Minister may give orders in relation to cutting of timber

(1) If the Minister considers that the cutting, or the method of cutting, of indigenous timber on private land will result—

(a) in damage to the locality by fire, climatic factors or soil erosion; or

(b) in interference with natural water supplies; or

(c) in general deterioration of the locality; or

(d) in interference with or the hindrance of the natural regeneration of vegetation; or

(e) in a general shortage of timber in the locality;

he may give written orders to the owner or occupier of such private land or to any person authorized by such owner or occupier to cut timber thereon to adopt such measures as he may deem necessary to prevent the occurrence of the results mentioned in paragraphs (a) to (e).

(2) Such orders may relate only to—

(a) the method of cutting and removal of trees on the land and the route by which trees shall be removed;

(b) the prohibition against or restriction of cutting trees on the land;

(c) the afforestation or re-forestation of the land.

(3) If any person fails or neglects to carry out any order made under this section within such reasonable time as may be fixed by the Minister, he shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

(4) If any owner of land fails or neglects to carry out any order made under paragraph (c) of subsection (2) within such reasonable time as the Minister may have fixed, the Minister may carry out or complete any work which is necessary to give effect to such order and subject to subsection (5), the amount of the cost of such work shall be a debt due by the owner to the State and, until discharged, interest shall be paid thereon at a rate not exceeding five dollars *per centum* per annum.

(5) If the owner considers that such work is not being satisfactorily carried out, he may appeal to the Administrative Court for an order exempting him from the whole or part of the cost of such work. Such Court shall make such order as it thinks fit, exempting the appellant from the whole or part of the cost of such work or dismissing the appeal.

60. Creation of charge on land for costs of works for re-forestation.

(1) If any owner of land who has, in terms of section fifty-nine, become indebted to the State, fails to pay such debt on demand, the Minister may, in writing, direct the Registrar of Deeds to note, free of charge, the debt on the title deed to such land and in the appropriate registers in the Deeds Registry and the Registrar of Deeds shall comply with such direction:

Provided that if the Registrar of Deeds is satisfied that the title deed to the land cannot, for any reason, be produced by the Minister in terms of subsection (3), he shall note the debt on the duplicate copy of the title deed and in the appropriate registers in the Deeds Registry and such noting shall have the same effect as if it had been made on the title deed.

(2) The document conveying such directions shall set forth—

(a) a description of the land in question and the number and date of its title deed; and

(b) the name of the owner; and

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(c) the total amount of the debt to be noted.

(3) Such document shall be accompanied by the title deed to the land.

(4) The making of such note on the title deed to the land shall create a charge of the debt noted upon the land attached thereto on transfer of the land and binding every successive owner thereof.

(5) Whenever a charge created under this section has been redeemed in full, the Minister shall notify the Registrar of Deeds who shall thereupon cancel the relevant note.

(6) After the making of the entries referred to in the proviso to subsection (1) no further transactions relating to the land affected by such endorsement shall be registered until such debt has been noted on the title deed to such land for which purpose the Registrar of Deeds is hereby authorized and required to impound the said title deed and to make the necessary endorsement thereon whenever it may, for any reason, be lodged in his office.

61. Returns relating to plantations

(1) The Minister may make regulations—

(a) providing for the inspection of any plantation by an employee of the Commission;

(b) providing for the registration of persons who own or control plantations;

(c) specifying the records relating to plantations to be kept by persons who own or control plantations and the returns, other than returns as to growing costs and selling prices, to be furnished to the Commission by such persons.

(2) Any person who contravenes any regulations made in terms of subsection (1) shall be guilty of an offence and liable to a fine not exceeding level three or to imprisonment for a period not exceeding one month or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

62. Minister may prohibit the planting of specified trees

(1) The Minister may, by notice in a statutory instrument, prohibit the planting of specified trees in Zimbabwe or in any defined portion thereof by reason of their proneness to disease or poisonous properties or in order to control their spread as weeds.

(2) Any person who plants any tree in contravention of a notice issued in terms of subsection (1) shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

63. Regulations for control of diseases and pests.

(1) The Minister may make regulations not inconsistent with this Act or any other enactment for the purpose of combating any fungus, bacterial or virus disease or insect or parasite pests affecting any kind of forest tree or timber on any State forest or any private forest or any other land or in any vehicle, aircraft, building, depot or place for storage, stacking, seasoning or working or treatment of timber or for preventing the introduction into or the spread within Zimbabwe of any such disease or pest.

(2) Penalties may be prescribed for the contravention of any regulations made under subsection (1) but no such penalties shall exceed a fine of level five or imprisonment for a period of six months or both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

Part VII – Regulation of trade in forest produce

64. Marking of timber and registration of marks

(1) On or before a date to be fixed by the Minister by statutory instrument, impressions to the number to be stipulated in such notice of every stamp hammer or other mark used to distinguish timber grown or felled. whether in State or private forests, and the products of such timber worked, manufactured, processed, sold or otherwise disposed of or removed therefrom by any person shall be registered with the Commission by the owner of such stamp hammer or mark.

(2) The Minister may, by notice in writing, require the owner or occupier of a private forest or the owner or proprietor of any sawmill, or cause him to be required, to register with the Commission on or before a date to be mentioned in such notice a specified number of impressions of a stamp hammer or other mark whereby timber felled in or removed from that forest or manufactured at or removed from that sawmill may be distinguished.

(3) From and after a date to be fixed by the Minister by statutory instrument, any person who places or causes to be placed or allows to be placed upon any timber felled in or removed from any State or private forest or manufactured at or removed from any sawmill or factory belonging to the Commission or any private sawmill or factory a mark that is not registered in accordance with this section shall be guilty of an offence and liable to a fine not exceeding level seven or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

(4) Any stamp hammer or timber mark submitted for registration and any alterations thereto shall be subject to approval by the Commission.

(5) The Minister shall cause a register to be kept and to be published from time to time in the *Gazette* of all stamp hammers or timber marks registered by the Commission in terms of this section.

65. Import, export, transport, sale, manufacture and grading of trees and timber and use of trade names in respect thereof

(1) The Minister may make regulations controlling or prohibiting—

(a) the importation into, or the exportation from, Zimbabwe or the removal from any place to another within Zimbabwe; or

(b) the purchase or sale;

of trees of any kind or portions or products thereof, including timber but not including the fruit of fruit trees.

(2) Regulations may—

(a) provide for the inspection of any trees or portions or products thereof, including timber but not including the fruit of fruit trees, by an employee of the Commission;

(b) provide for the registration of persons who are engaged in the sawing, manufacturing, processing or selling of any timber or forest produce which may be prescribed or who deal in such timber or forest produce;

(c) specify the records relating to such timber or forest produce to be kept by such persons and the returns, other than returns as to production costs and selling prices, to be furnished to the Commission by such persons;

(d) prescribe the dimensions and the methods and degree of seasoning and preservation treatment of any such timber and the grades, standards of quality and manner of grading, packing or marking of any such forest produce subject to which such timber or forest produce

may be sawn, manufactured or processed for trade purposes or purchased or sold or imported into or exported from Zimbabwe;

(e) prohibit the use for trade purposes, sale, removal from any place to another within Zimbabwe or export from Zimbabwe of any such timber which is not of the prescribed dimensions or has not been seasoned in the prescribed manner or any such forest produce which is not of the prescribed grade or standard of quality or has not been graded, packed or marked in the prescribed manner:

(f) prescribe or define the trade name or description whereby any such timber or any produce derived therefrom shall be known or described and under which it shall be imported into or exported from or sold or otherwise disposed of in Zimbabwe and prohibit the use of any other trade name or description in place thereof;

(g) prescribe the place and manner of inspection of any such timber or forest produce intended for export from Zimbabwe, the times at which, the manner in which and the persons to whom notice of intention to export such timber or forest produce shall be given, the fees to be paid in respect of the inspection of such timber or forest produce, the times of payment of such fees and the persons to whom such payment shall be made;

(h) prescribe the method of taking samples for examination, analysis or test of any forest produce intended for export from Zimbabwe and the circumstances under which and the manner in which such forest produce may be graded, marked, re-graded or re-marked;

(i) provide generally for improvement in the quality and the methods of manufacture and marketing of any such timber or forest produce;

(j) provide for the confiscation by the State of any timber which is imported into Zimbabwe or removed from any place within Zimbabwe to another place within Zimbabwe contrary to this Act.

(3) Any person who contravenes any regulation made in terms of this section shall be guilty of an offence and liable to a fine not exceeding level three or to imprisonment for a period not exceeding one month or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

66. Power of Commission to make by-laws

(1) Subject to subsection (3), the Commission may make by-laws providing for any matter which, in the opinion of the Commission, is necessary or expedient for the proper control and good management of any demarcated forest.

(2) By-laws in terms of subsection (1) may provide for the control or prohibition of—

(a) the use of land in a demarcated forest for residence, cultivation, grazing, camping or picnicking;

(b) the entry of persons into a demarcated forest, subject to the rights of the public to travel on public roads;

(c) the use by persons of facilities provided in demarcated forests, including the prohibition of the use of facilities otherwise than on the basis, terms and conditions on which they are provided;

(d) the development of forest conservation and demarcation programmes.

[paragraph (d) inserted by section 14 of Act 4 of 2021]

(2a) By-laws made in terms of subsection (1) may provide penalties for contraventions thereof, but no such penalty shall exceed a fine of level seven or imprisonment for a period of six months or both such fine and such imprisonment.

[subsection inserted by section 4 of Act 22 of 2001]

(3) By-laws made in terms of subsection (1) shall not have effect until they have been approved by the Minister and published in a statutory instrument.

(4) The Forest (Demarcated Forests) (Land Use) Regulations, 1970, published in Rhodesia Government Notice No. 382 of 1970, shall be deemed to be by-laws made by the Commission in terms of this section.

Part VIII – Control of fires and burning of vegetation

67. Notice of intention to burn standing vegetation to be given to occupiers of adjoining land

(1) Subject to subsection (4), no person shall burn growing or standing vegetation on any land except in accordance with notice given in terms of subsection (3) to the occupiers of all adjoining land and to a police officer at the nearest convenient police station.

(2) Such notice shall be given as follows—

(a) a preliminary notice stating as nearly as possible the date of the proposed burning, which shall in any case be not less than two or more than eight weeks after the date of the giving of such preliminary notice, and

(b) a final notice stating as nearly as possible the time of the proposed burning, which shall in any case be not less than six or more than twenty-four hours after the time of the giving of such final notice:

Provided that—

(i) if for any reason the burning does not take place at such time a fresh final notice or notices shall be given;

(ii) if it is not practicable, after reasonable inquiry, to give final notice to the occupier of any land, it shall be given to some person on the land apparently over the age of sixteen years or, if there is no such person on the land, a written notice shall be affixed in some conspicuous place on the land.

(3) Notwithstanding subsections (2) and (3), notice in terms of this section may in any particular case be dispensed with by agreement in writing between the person intending to burn as aforesaid and all the occupiers mentioned in subsection (2):

Provided that notice of the date and time of the proposed burning shall be given to a police officer at the nearest convenient police station before the burning takes place.

(4) Any person who contravenes subsection (2) or (3) shall be guilty of an offence and liable to a fine not exceeding level four or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

68. Provision and maintenance of fireguards on common boundaries

(1) Any owner or occupier of land who desires to guard against fires crossing the boundaries thereof may call upon the owner or occupier of any adjoining private land on the boundaries of which sufficient fireguards have not been provided and maintained to assist him in the establishment of a

common fireguard or to contribute one half of the labour or cost necessary to provide and maintain sufficient fireguards on their common boundaries within a period of three weeks after such request.

(2) If any person so called upon refuses to assist or neglects to contribute as required by subsection (1), the person so calling upon him may construct or maintain such fireguards and shall be entitled to recover from such first-mentioned person half the necessary cost of such construction or maintenance.

(3) For the purposes of this section, a fireguard shall not be sufficient unless it is at least nine metres wide on each side of the common boundary or such other line as may have been agreed upon by the owners or occupiers concerned at all points thereof.

(4) if any fireguard is of the width required by subsection (3), but its sufficiency for the purposes of this section is disputed on the ground that such fireguard is not sufficiently cleared of inflammable matter, the dispute shall be referred for decision to the designated Forest Officer. Appeals shall lie with the Provincial Head and thereafter the Director-General whose decisions shall be made within ten (10) working days respectively.

[subsection (4) substituted by section 15(a) of Act 4 of 2021]

(5) For the purposes of this section, Communal Land shall be regarded as private land and the Minister shall be deemed to be the owner and occupier thereof.

[subsection amended by section 142 of Act 13 of 2002]

(6) If a dispute arises as to the boundaries of the land in respect of which an occupier who is a miner is liable, under the provisions of this section, to assist in the establishment of a common fireguard or to contribute labour or towards the cost necessary to provide and maintain fireguards, such dispute shall be referred for decision to the designated forest officer who shall consult with a local environmental officer, as defined in section 2 of the Environmental Management Act *[Chapter 20:27]*. Appeals shall lie with the Provincial Head and thereafter the Director-General whose decisions shall be made within ten (10) working days respectively.

[subsection (6) amended by section 142 of Act 13 of 2002 and substituted by section 15(b) of Act 4 of 2021]

69. Orders in relation to fireguards

(1) A forest officer, may after due consideration of the surrounding environment and any fire suppression measures put in place by the owner or occupier of land, order that the owner or occupier—

(a) construct a fireguard on the boundary of his or her land, of at least nine meters in width from the boundary line with adjacent property;

(b) undertake any other preventative measures as the forest officer may deem fit under the circumstances.

(2) No order shall be valid until it is approved by the Provincial Head of the Forestry Commission, who may, if he or she deems it fit, liaise with the Director General of the Environmental Management Agency established under the Environmental Management Act *[Chapter 20:27]* before making a final decision.

(3) Any owner or occupier in receipt of an order made in terms of subsection (1) may appeal to the Director-General on any of the following grounds that the—

(a) circumstances do not justify the making of the order;

(b) terms of the order are unreasonable.

(4) The Minister shall make an appropriate order.

(5) Any person who fails to comply with an order made in terms of subsection (1) shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not less than three months for each hectare or to both such fine and such imprisonment:

Provided that the extent of the danger posed by the size of the land and vegetation on the land shall be of paramount consideration, in any case the fine shall not exceed level eleven and the period of imprisonment shall not exceed five years.

(6) If the Minister considers that such a course of action is necessary or expedient for the conservation or protection of the natural resources within the area of a rural district council he or she may—

(a) authorise the concerned council to prepare a plan, dealing with such matters as may be prescribed, for the prevention of fires within that area; and

(b) after the consultation with the Secretary as defined in section 2 of the Environmental Management Act *[Chapter 20:27]*, authorise that the Secretary give written orders to the owners, occupiers or users of any land within that area to act in accordance with the plan prepared in terms of paragraph (a).

[section 69 substituted by section 16 of Act 4 of 2021]

70. Fires kindled on land of another to be controlled and extinguished

(1) Any person who is upon the land of another, whether lawfully or not, or upon any road or vacant land shall carefully and properly extinguish any fire kindled or used by him, and until he has so done shall not go so far from any such fire as to be unable to control it by himself or his employees.

[subsection (1) amended by section 17 of Act 4 of 2021]

(2) Failure to take appropriate action, in terms of subsection (1), shall constitute an offence and the provisions of section 78 shall apply, *mutatis mutandis*, to this section.

[subsection (2) inserted by section 17 of Act 4 of 2021]

71. Saving of counter-firing

Nothing in this Act contained shall be deemed to prohibit any person, when his life, person or property is in danger of loss or injury from an approaching fire, from setting alight to and burning vegetation, in the manner commonly known as counter-firing. in order to prevent such loss or injury:

Provided that he shall take reasonable care that a fire so kindled does not spread beyond the limits necessary to secure him from such loss or injury.

72. Liability of servant acting under direction of employer

(1) If any servant when acting under the direction or command of his employer by any act or omission contravenes this Part, such employer and such employee may both or either of them be prosecuted. and, if convicted, punished under this Act.

[subsection (1) amended by section 18 of Act 4 of 2021]

(2) The provisions of section 78 shall apply, *mutatis mutandis*, with regards to this section.

[subsection (2) inserted by section 18 of Act 4 of 2021]

73. Saving of rights to recover damages

Save in respect of any reasonable and necessary action taken under section seventy-one or seventy-five and subject to the provisions of section seventy-four, nothing in this Part contained shall be deemed to affect the right of any person aggrieved to recover damages by civil action for any loss sustained by him.

74. Inquiry into damage sustained

(1) Whenever any person is convicted by a court of an offence against this Act, and it appears that such person has by that offence caused damage to any person, such court may, at the written request of such person, but in the presence of the convicted person, inquire summarily and without pleadings into the amount of damage so caused.

(2) Upon proof of such amount, such court shall give judgment therefor in favour of the applicant and against the convicted person, and such judgment shall be of the same force and effect and be executable in the same manner as if it had been given in a civil action duly instituted before such court:

Provided that judgment shall not be given under this section for a sum exceeding the civil jurisdiction of such court.

(3) Where judgment has been given in terms of subsection (2), the said convicted person shall not be liable at the suit of the said applicant to any other civil proceedings in respect of the damage for which the judgment has been given.

75. Procedure in regard to extinguishing fire

(1) Whenever there is good reason to believe that any fire in the open air may become dangerous to life or property, any person acting in good faith may either alone or with persons under his control enter upon any land for the purpose of extinguishing that fire or for preventing the extension thereof.

(2) If any person believes that any fire in the open air may become dangerous to life or property, he may notify the owner or occupier of the land upon which such fire is burning of his belief. Such owner or occupier shall take all reasonable steps to extinguish or prevent the spread of such fire. Any such owner or occupier who fails to comply with the provisions of this subsection, and the fire becomes dangerous to life and property, shall be guilty of an offence and the provisions of section 78 shall apply, *mutatis mutandis* and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection (2) amended by section 4 of Act 22 of 2001 and by section 19(a) of Act 4 of 2021]

(3) If any fire is approaching within a dangerous distance of the boundary of a State forest, the forest officer, environmental officer or inspector, or traditional leader, or an official of a local authority or other authority present shall have the right to take full control.

[subsection (3) amended by section 19(c) of Act 4 of 2021]

(4) Any person acting in terms of subsection (1) or any owner or occupier of land upon which there is a fire such as is described in that subsection—

(a) shall have the control of persons under his command and of persons who voluntarily place their services at his disposal;

(b) may take such measures as in the circumstances are reasonable and necessary or expedient for the protection of life and property or for extinguishing or preventing the spread of the fire, and may for such purpose cause reasonable destruction of any trees, grass, crops or other vegetation by cutting, burning, ploughing or otherwise;

(c) may call upon any person present at or in the vicinity of such fire to assist or to do any act or perform any service which may reasonably be considered necessary or expedient to control or extinguish or prevent the spread of the fire;

(d) may order any person whose life may be or may become endangered or whose presence at or in the vicinity of the fire may interfere with any operation in connexion with the fire, to remove himself or any vehicle or other thing under his control.

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(5) Any person who fails to comply with any requirement or order under subsection (4) shall be guilty of an offence and liable to a fine not less than level 4 and not exceeding level 6 or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection (5) amended by section 4 of Act 22 of 2001 and by section 19(b) of Act 4 of 2021]

(6) No liability shall attach to the State in respect of any loss or damage arising out of the lawful exercise by a forest officer, environmental officer or inspector, or traditional leader, or an official of a local authority or other authority of any power conferred by this section, and no person shall be entitled to any compensation or reward whatever in respect of any act performed or service rendered by him in pursuance of any requirement or order under subsection (4):

Provided that the State may pay to any person who has so suffered loss or damage or who has performed any such act or rendered any such service with respect to the protection from fire of a State forest such compensation or reward as the Minister may with the approval of the Treasury determine.

[subsection (6) amended by section 19(c) of Act 4 of 2021]

(7) No action shall lie for trespass or for damages caused in good faith by any person in charge of any operations lawfully undertaken under this section or by any person assisting in such operations, but the person in charge of the operations shall at the first convenient opportunity report the circumstances and the action taken to the nearest police officer or justice of the peace or to the provincial magistrate of the province concerned.

75A. Appeals against decision of Commission

(1) Subject to this section, any person who is aggrieved by any decision of the Commission in terms of this Act, may within twenty-eight (28) days after being notified of the decision or action of the Commission, appeal in writing to the Minister:

Provided that such appeal shall not suspend the operation of a decision of the Commission.

(2) For the purpose of determining an appeal noted in subsection 1, the Minister may require the Commission to furnish him or her with the reasons for a decision or action that is the subject of the appeal and a copy of any evidence upon which the reasons are based.

(3) The Minister may, after due and expeditious enquiry, make such a decision on any appeal noted in terms of subsection (1).

(4) An appeal from the decision of the Minister shall lie with the Administrative Court and Part IX of the Environmental Management Act *[Chapter 20:27]* shall apply, *mutatis mutandis*, accordingly.

[section 75A inserted by section 20 of Act 4 of 2021]

Part IX – Plantations on Mozambique border

76. Plantations on Mozambique border

(1) No person shall, except with the prior written permission of the Minister—

(a) plant a non-indigenous tree; or

(b) cause or permit the growth of any re-shoot or re-growth from a non-indigenous tree; or

(c) cause or permit the growth of any seedling of a non-indigenous tree, other than a seedling which has been planted by man;

within a distance of fifty metres from the international border between Zimbabwe and Mozambique.

(2) In giving any permission under subsection (1) he Minister may impose such conditions as he deems fit.

(3) Any person who contravenes the provisions of subsection (1) or contravenes or fails to comply with any condition imposed under subsection (2) shall be guilty of an offence and liable to a fine not exceeding level four or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

77. Removal of trees on Mozambique border

(1) Where any tree, re-shoot, regrowth or seedling such as is mentioned in section seventy-six, hereinafter called a tree, is growing in contravention of the provisions of that section or any condition imposed thereunder, a forest officer may serve a written notice on the owner of the land ordering him to remove such tree within a reasonable period specified in the notice.

(2) If such tree is not removed within such period, a forest officer may, if authorized in writing by the Minister, enter upon the land in question with such assistance as he may require and remove such tree, and the cost of such removal shall be a debt due by the owner of the land to the State and may be recovered by the Minister in any competent court.

(3) Nothing in this section shall relieve any person from any penalty he may have incurred under section seventy-six.

Part X – Offences and penalties

78. Major offences

(1) Any person who, without authority, in or on a State forest or private forest—

(a) cuts, injures, destroys, collects, takes or removes any tree, timber or other forest produce; or

(b) injures, alters, shifts or removes or interferes with any beacon, boundary mark or fence;

shall be guilty of an offence and liable—

(i) where damage has been wilfully caused, to a fine not exceeding level eight or to imprisonment for a period not exceeding two years or to both such fine and such imprisonment;

(ii) in any other case, to a fine not exceeding level six or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

(2) Any person who, without authority, in or on a State forest or private forest, lights or assists in lighting or uses, rekindles or adds fuel to any fire, shall be guilty of an offence and liable—

(a) where damage has been wilfully caused, to a level ten (10) fine or imprisonment for a period not less than five (5) years or both such fine and such imprisonment;

[paragraph (a) substituted by section 21(a) of Act 4 of 2021]

(b) in any other case, to a level six (6) fine or imprisonment for a period not less than two (2) year or both such fine and such imprisonment.

[paragraph (b) substituted by section 21(a) of Act 4 of 2021]

(3) Any person who, in the open air on any land—

(a) leaves unattended a fire which he, with or without authority, has lighted or assisted in lighting or used or rekindled or to which he has added fuel before the fire is thoroughly extinguished; or

(b) with or without authority, has lighted or assisted in lighting, or used or rekindled or added fuel to a fire which spreads or causes injury;

shall be guilty of an offence and liable—

(i) where has been wilfully caused, to a level ten (10) fine or to imprisonment for a period not less than five (5) years or to both such fine and such imprisonment;

(ii) in any other case, to a level six (6) fine or to imprisonment for a not less than two (2) year or both such fine and such imprisonment any other case, to a fine not less than level four or to imprisonment for a period not less than six months or to both such fine and such imprisonment.

[subsection (3) substituted by section 4 of Act 22 of 2001 and amended by section 21(b) of Act 4 of 2021]

(4) The Court shall take into account such aggravating factors as loss of human life, livestock, wildlife, trees/forest and other property.

[subsection (4) inserted by section 21(c) of Act 4 of 2021]

79. Minor offences

(1) Any person who, without authority—

(a) contravenes any condition or regulation stated or referred to in any licence or permit issued under this Act; or

(b) in or on a State forest—

(i) clears, breaks up or cultivates land; or

(ii) climbs through or over any fence or gate; or

(c) in or on a State forest or private forest, other than a plantation referred to in section eighty, enters any part where entry is prohibited by notice in terms of subsection (2); or

(d) in or on a State forest or private forest wilfully injures, alters, shifts or in any other way interferes with any notice or notice-board;

shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

(2) For the purposes of paragraph (c) of subsection (1), a notice prohibiting entry into any part of a forest shall be sufficient if it is published in the *Gazette* and—

(a) not later than fourteen days thereafter published in a newspaper circulating in the district in which the forest is situate; or

(b) prominently displayed at or near every place where a path, track or road enters the area concerned:

Provided that the operation of any such notice shall expire one year after the date of publication in the *Gazette*.

80. Illegal entry of plantation

(1) Any person who, without authority, is in or on a plantation which is either a demarcated forest or a protected private forest, unless he is on a road as defined in section 3 of the Roads Act *[Chapter 13:12]* or on a specified route, shall be guilty of an offence and liable to a fine not exceeding level

five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

(2) For the purposes of this section—

"specified route" means a route specified by notice published in the *Gazette* and not later than fourteen days thereafter published in a newspaper circulating in the district in which the plantation is situate:

Provided that the operation of any such notice shall expire one year after the date of publication in the *Gazette*.

(3) Whenever there is in force a notice published in terms of subsection (2), notices prohibiting entry shall be prominently displayed at or near every point where a route other than a road referred to in subsection (1) or specified route enters the plantation concerned or branches off from such a road or a specified route and enters any part of such plantation:

Provided that the failure to display any such notice or the absence of any such notice shall not be a defence in any prosecution for a contravention of subsection (1).

81. Offences relating to smoking or negligent use of matches

Any person who in or on a State forest or a private forest smokes where smoking is by notice prohibited, or negligently lights or throws down any burning match or burning material, shall be guilty of an offence and liable to a fine of not less than level seven (7) or to imprisonment for a period of not less than three months or to both such fine and such imprisonment.

[section 81 amended by section 4 of Act 22 of 2001 and by section 22 of Act 4 of 2021]

82. Miscellaneous offences

Any—

(a) person who, without authority—

(i) makes upon or affixes to any forest produce a mark used by the Commission to indicate that such forest produce is the property of the Commission, or makes upon or affixes to any forest produce a mark to indicate that such forest produce may be lawfully cut or removed; or

(ii) alters, obliterates or defaces any stamp, mark or sign placed upon timber or other forest produce by or on the authority of the Commission or any licence, pass or permit issued by or on the authority of the Commission; or

(iii) wears any uniform or part of a uniform or any badge or other mark issued by the State or Commission to be worn by forest officers or other employees of the State or Commission;

or

(b) forest officer or employee of the Commission who—

(i) solicits or receives or agrees to receive, whether for himself or otherwise, any payment, advantage or reward, pecuniary or otherwise, in consideration of his doing anything in conflict with his duty or of his remaining from doing his duty; or

(ii) solicits or receives or agrees to receive, whether for himself or otherwise, from any person other than the State or Commission, as the case may be, any payment, advantage or reward, pecuniary or otherwise, in consideration of his doing his duty; or

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(iii) trades in forest produce or acts as an agent for any person trading in forest produce;

shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[section amended by section 4 of Act 22 of 2001]

83. ***

[section repealed by section 4 of Act 22 of 2001]

84. Licences and permits may be cancelled

If any holder of a licence or permit under this Act, other than a mining timber permit, fails to comply with the terms and conditions of his licence or permit or contravenes this Act subject to which such licence or permit was issued, such licence or permit may be cancelled by the authority which issued it.

Part XI – Miscellaneous

85. Wrongful possession of forest produce

(1) Whenever a forest officer or police officer on reasonable grounds suspects that any forest produce found in or obtained from or in transit from a State or private forest, or a sawmill or factory belonging to the Commission or a private sawmill or factory, is about to be or has been wrongfully removed, he may seize and detain such forest produce pending inquiry and no action for damages shall lie in respect of such seizure or detention.

(2) A forest officer or police officer may without warrant arrest any person found in possession of any forest produce unless such person produces a licence or permit authorizing the removal or gives a satisfactory account of the manner in which he became possessed of such forest produce and if any person so arrested is unable to satisfy the court that he had a lawful right to be in possession of the said forest produce, he shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

86. Special powers of various officers

(1) Every forest officer or police officer may at all reasonable times demand from any person the production of any licence, permit or other authority which he is required under this Act to have, and any person failing to produce such licence, permit or authority on such demand shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

(2) Every forest officer, except such description of officers as the Minister may designate, shall in or in connection with State or private forests or in respect of any offence, attempted offence or suspected offence under this Act have all the powers vested by law in police officers including but not limited to, powers of arrest, search, issuance of fining tickets and seizure of any item used in the commission of a offence under this Act.

[subsection (2) amended by section 23 of Act 4 of 2021]

(3) Every forest officer may, in addition to the powers conferred upon him by subsection (2), and every police officer may—

(a) arrest without warrant any person reasonably suspected of having been a party to any of the offences mentioned in section seventy-eight;

(b) arrest without warrant any person reasonably suspected of having been a party to any offence under this Act if such forest officer or police officer has reason to believe that the said person will fail to appear in answer to a summons;

(c) seize any forest produce in respect of which such forest officer has reason to believe that an offence under this Act has been committed;

(d) seize any weapon, vehicle, instrument or animal or any other thing which such forest officer or police officer has reason to believe has been used in the commission of an offence under this Act.

Any seizure under this subsection shall forthwith be reported to a magistrate who may make such order as to the further retention or disposal of the seized property as may appear to him from the facts reported to be just or expedient.

87. Evidence

(1) Whenever in any proceedings under this Act the question arises whether any forest produce is the property of the Commission, it shall be presumed to be the property of the Commission unless the contrary is proved.

(2) Any person charged with doing any act for which by this Act a licence, permit or other authority is required, shall be deemed to be without such licence, permit or authority unless he produces the same to the court or gives other satisfactory proof of possessing the same.

88. Court may make orders as to restitution and damages

(1) Whenever upon the hearing of any charge under this Act or any other law the court finds as a fact that forest produce has been unlawfully removed from a State forest or a private forest, it may, in addition to the powers conferred upon it by the Criminal Procedure and Evidence Act *[Chapter 9:07]*, order that the same be returned by the person in possession thereof or that damages in respect thereof to an amount fixed by the court be paid by the accused to the owner. Every such order may be enforced in the same manner as judgments of such court in civil actions are enforced.

(2) Subsection (1) relating to damages shall apply in respect of any unlawful cutting of or injury to forest produce or any damage wilfully or negligently caused by fire to forest produce in a forest.

89. Powers of Minister

(1) The Minister may make regulations providing for any matter which by this Act is required or permitted to be prescribed or which, in his opinion, is necessary or expedient to be provided for in order to carry out or give effect to this Act.

(2) Regulations in terms of subsection (1) may, in respect of undemarcated forest, provide for—

(a) the sale or disposal of trees, wood or other forest produce and the felling, working and removal thereof;

(b) the issue of licences for any activity referred to in paragraph (a) and the cancellation of such licences;

(c) the fees or charges to be paid in connection with licences issued or services or facilities provided.

(2a) Regulations in terms of subsection (1) may provide penalties for contraventions thereof, but no such penalty shall exceed a fine of level five or imprisonment for a period of six months or both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

(2b) In making regulations under subsection (1) and where the matter concerns the management and control of veld fires, the Minister may consult Ministers responsible for agriculture, local government, transport, energy, women affairs, mines or any other relevant Ministry as the Minister may determine from time to time:

Provided that in all matters which have a bearing on the management and control of veld fires and involves the application of any other law, this Act shall take precedence.

[subsection (2b) inserted by section 24 of Act 4 of 2021]

(3) The Minister may, in regulations in terms of subsection (1) or by notice in writing to the Commission, fix the terms and conditions on which persons may be permitted by the Commission to occupy or lease land in a demarcated forest and the Commission shall exercise its powers in terms of this Act in accordance with such terms and conditions.

(4) The Forest (Undemarcated) Regulations, 1953, published in Rhodesia Government Notice No. 850 of 1953, shall be deemed to be regulations made by the Minister in terms of this section.

First Schedule (Section 27)

Provisions applicable to persons employed by commission other than persons seconded from public service

1. In this Schedule—

"contributor" means an employee of the Commission who is required in terms of subparagraph (1) of paragraph 2 to contribute to the Consolidated Revenue Fund.

2. (1) Subject to this Schedule, the Commission may, with the approval of the Public Service Commission, require an employee to whom this Schedule applies to contribute to the Consolidated Revenue Fund as though he were a member of the Public Service.

(2) Whenever an employee of the Commission is required to contribute in terms of subparagraph (1), the Public Service Commission shall—

(a) fix the date from which he shall contribute; and

(b) declare whether the employee shall be regarded as an established officer or a senior or junior employee in the Public Service for the purpose of determining, in accordance with the provisions of this Schedule, the rate at which he shall contribute and any other matter relating to the payment of a pension or other benefit to him.

3. Subject to paragraphs 4 and 5, the law relating to—

(a) the payment of contributions and arrear contributions in respect of pensions by members of the Public Service; and

(b) the retirement, resignation, discharge and pensionable age of members of the Public Service; and

(c) the payment of pensions and other benefits to members of the Public Service and their dependants; and

(d) the commutation of pensions payable to former members of the Public Service; and

(e) the recall to duty of former members of the Public Service who were required to retire on the grounds of their ill-health or mental or physical infirmity or deficiency;

including the Pensions and Other Benefits Act *[Chapter 16:01]*, shall apply, *mutatis mutandis*, in respect of every contributor in accordance with the declaration made in regard to him by the Public Service Commission in terms of subparagraph (b) of subparagraph (2) of paragraph 2, as though his service with the Commission were service with the State and any reference in such law to the Public Service Commission were a reference to the Commission.

4. The salary paid to a contributor by the Commission, together with any allowance declared by the Public Service Commission to be pensionable for the purposes of this paragraph, shall be regarded as the pensionable emoluments of the contributor.

5. If the Commission, without the approval of the Public Service Commission, discharges a contributor or requires him to retire—

   (a) on the grounds of his continued ill-health or if he becomes incapable because of mental or physical deficiency or infirmity of efficiently performing his duties; or

   (b) owing to the abolition of his post or a reduction in or an adjustment of the organization of the Commission;

   and the contributor is, in terms of the law referred to in paragraph 3, entitled to a pension on such discharge or retirement, the pension payable to him shall be calculated as if he had been discharged or required to retire owing to the abolition of his post but in relation to his actual pensionable service.

Second Schedule Section 11

Powers of Commission

1. To do anything which this Act provides may or shall be done by the Commission.

1A. With the approval of the Minister, to promote, establish, manage or acquire Companies or other undertakings and, in connection with any such Company or undertaking, to appoint any person to act on behalf of the Commission or the Minister as a director or in any other capacity in relation to it.

[paragraph inserted by Act 8 of 1999]

1B. With the approval of the Minister and the Minister responsible for finance, to transfer to a Company or undertaking referred to in paragraph 1A such of the Commission's funds or other assets as the Commission considers necessary to enable the Company or undertaking to carry out its functions.

[paragraph inserted by Act 8 of 1999]

2. To purchase, lease or otherwise acquire land for any of the purposes specified in this Act.

3. To acquire, establish or construct saw-mills, seasoning kilns, preservation plants and offices and any other plant, apparatus or premises necessary or convenient for the operations of the Commission.

4. To provide accommodation, entertainment and other facilities in demarcated forests for visitors.

5. To purchase or otherwise acquire any timber, forest produce or livestock, to keep livestock in any demarcated forest and to sell or otherwise dispose of any such timber or forest produce or anything manufactured therefrom or any such livestock.

6. To construct and maintain roads, tracks, irrigation works and other developments necessary or convenient for the operations of the Commission.

7. To buy, take in exchange, hire or otherwise acquire movable property, including aircraft, vehicles, machinery, plant or apparatus, necessary or convenient for the operations of the Commission.

8. To obtain, in terms of the Water Act *[Chapter 20:22]*, water rights necessary or convenient for the operations of the Commission as if it were the owner of demarcated forests.

9. To maintain, alter and improve property of, or controlled and managed by, the Commission.

10. To apply for, buy or otherwise acquire patents, licences, concessions or the like conferring an exclusive or nonexclusive or limited right to use information or a process which may seem to the Commission capable of being used for the operations of the Commission or the acquisition of which may seem to the Commission calculated, directly or indirectly, to benefit the Commission and to use, exercise, develop and grant licences in respect of, or otherwise turn to account, rights, information and processes so acquired.

11. To sell, exchange, lease, mortgage, dispose of, turn to account or otherwise deal with the assets of the Commission or any part thereof for such consideration as the Commission may determine.

12. To grant to other persons rights in connection with the occupation or use of land which is owned or occupied or controlled and managed by the Commission for such consideration as the Commission may determine.

13. To draw, make, accept. endorse, discount, execute and issue for the purpose of the operations of the Commission promissory notes, bills of exchange, bills of lading, securities and other negotiable and transferable instruments.

14. To insure against losses, damages, risks and liabilities which the Commission may incur.

15. To enter into agreements, including agreements of suretyship or guarantee, and to modify or rescind such agreements.

16. Subject to the approval of the Minister and the Minister responsible for finance, to invest the funds of the Commission not immediately required by it.

17. To construct, purchase, take on lease or in exchange or otherwise acquire dwelling-houses for occupation by employees of the Commission.

18. On such terms and conditions as the Commission, with the approval of the Minister responsible for finance, may determine, to guarantee loans made to employees of the Commission or their spouses for the purchase of dwelling-houses or land for residential purposes, the construction of dwelling-houses and the improvement of dwelling-houses or land which are the property of such employees or their spouses.

19. To make loans to employees of the Commission for the purpose of purchasing vehicles, tools, or other equipment to be used by those employees in carrying out their duties.

20. To provide recreational facilities for, and activities conducive to, the welfare of employees and pensioners of the Commission and the families of such persons and to assist the promotion by other persons of such activities.

21. To fix fees or charges in connection with services, accommodation or facilities provided by the Commission or for licences or permits issued under this Act.

22. To do anything for the purpose of improving—

    (a) the skill, knowledge or usefulness of persons employed in connection with forestry;

    (b) the efficiency of the equipment of the Commission or the manner in which the equipment is operated;

    and in that connection to provide or assist other persons in providing facilities for training, education and research.

23. To establish and maintain nurseries and to promote or embark upon research in connection with, and to investigate problems affecting, forestry.

24. Subject to the approval of the Minister and the Minister responsible for finance, to grant such scholarships or bursaries and provide for such fellowships as the Commission considers to be in the interests of forestry on such terms and conditions as the Commission may fix in each particular case.

24A On behalf of the State, to institute and maintain proceedings in any Court or tribunal for the recovery of revenues, and to take such other steps as may be necessary to recover revenues.

[paragraph 24A inserted by section 25 of Act 4 of 2021]

25. Generally, to do all such things as are incidental or conducive to the performance of the duties of the Commission or are incidental to the powers specified in this Schedule or which are calculated, directly or indirectly, to enhance the value of, or to develop, the operations or the property of the Commission.

Third Schedule (Sections 33, 34 and 35)

Forest estate

Part I – Demarcated forests on forest land

Binga district

Item 1: Kavira

Area: 28 200 hectares

The area of land bounded by a line drawn from the point where the Mlibizi River flows into Lake Kariba, generally southwards up that river to its confluence with the Liwando River; thence proceeding south-westwards up that river to a point where it is intersected by a game-fence at map reference 35KNL074050 on the 1:50 000 map Masutu 1827A1, Edition l; thence south-westwards direct along itto a point at map reference NL037029 on that map; thence along it to a point at map reference NK000989 on that map; thence south-westwards along it to a point at map reference 35KMK965943 on the 1:50 000 map Boma 1826B2, published 1968; thence due south along it to a point at map reference MK966925 on that map; thence due west to a point on the Gwai River at map reference MK861922 on that map; thence generally northwards down that river to its confluence with an unnamed tributary at map reference ML879014 on that map; thence north-eastwards direct towards the former confluence of the Zambezi and Kaunga rivers until the full-supply level of Lake Kariba is reached; thence generally eastwards along that full-supply level to the starting-point.

Map references quoted in this description are given to the nearest hundred metres.

Item 2: Mzolo

Area: 67 200 hectares

The area of land bounded by a line drawn from a point on the Chepali River at map reference 35KNK824822 on the 1:50 000 map Lusulu 1827B2, Edition 1, north-eastwards direct to a point on the Kwaaieepa Escarpment at map reference NK953890 on that map; thence proceeding due south to the confluence of the Sitokolombizi and Kamisowe rivers; thence south-westwards up the Kamisowe River to its commencement at map reference 35KNK907726 on the 1:50 000 map Dandanda Pan 1827B4, Edition l; thence southwards direct to a point on the Kamwali River at map reference NK905672 on that map; thence west-south-westwards along a fence, to the confluence of an unnamed tributary and the Kakulu River at map reference 35KNQ607625 on the 1:50 000 map Cewali 1827B3, Edition l; thence north-westwards direct to a point at map reference NQ569670 on that map; thence north-westwards direct to a point on the confluence of the head-waters of the Kasawe River at map reference NQ546692 on that map; thence west-south-westwards direct to a point on a line drawn south-eastwards from Trigonometrical Station Chimeja (239/P) direct to Lubimbi Fly-gate at map reference 35KNK352644 on the 1:50 000 map Lubimbi 1827A4, Edition l; thence north-eastwards direct to a point at map reference NK451736 on that map; thence due east to a point on the road from Lubimbi Hot Springs to Siambolo Fly-gate at map reference NK473736 on that map; thence north-eastwards along that road to Siambolo Fly-gate; thence eastwards direct for 30 kilometres to a point on the Chepali River at map reference 35KNK827789 on the 1:50 000 map Dandanda Pan 1827B4, Edition 1; thence northwards down that river to the starting-point.

Map references quoted in this description are given to the nearest hundred metres.

Item 3: Sijarira

Area: 25 600 hectares

The area of land bounded by a line drawn from a point where the Senkwi River flows into Lake Kariba, generally eastwards up that river to its confluence with the Makandabwe River; thence proceeding generally southwards up that river to a point where it is crossed by a road at map reference 35KNL647582 on the 1:50 000 map Siganda 1727Dl, Edition l; thence south-eastwards direct towards beacon Siganda until the Binga-Siabuwa road is reached, at map reference NL662522 on that map; thence westwards along that road to the Masumo River; thence

generally northwards down that river to the point where it flows into Lake Kariba; thence generally northwards and eastwards along the fully-supply level of Lake Kariba to the starting-point.

Map references quoted in this description are given to the nearest hundred metres.

Bubi district

Item 4: Bembesi

Area: 55 100 hectares

The area of land bounded by a line drawn from the south-eastern beacon of Pioneer Block East south-westwards direct to the north-western beacon of Westgate; thence proceeding south-westwards along the western boundaries of Westgate and Bembezaan to the Bembezi River; thence generally eastwards up that river to its intersection by the western boundary of Glenarton West; thence south-westwards and eastwards along its western and southern boundaries to its south-eastern beacon; thence south-westwards along the western boundaries of Nthobi Ranch to its westernmost beacon; thence north-westwards along the northern boundaries of Winter Block, Spring Block and the Eland Block to the northern beacon of the Eland Block; thence southwards to the south-western beacon of that property; thence north-westwards direct to the easternmost beacon of Grants Farm; thence north-westwards along the eastern boundaries of Grants Farm, Batley, Groote Schuur 2, Umzibani and Franklands Farm to the northernmost beacon of Franklands Farm; thence north-eastwards direct to a point on the southern boundary of Pioneer Block East at map reference 35KPJ276779 on the 1:50 000 map Lake Alice 1928A1, Edition l; thence south-eastwards along the southern boundary of Pioneer Block East to the starting-point.

The map reference quoted in this description is given to the nearest hundred metres.

Item 5: Molo

Area: 2900 hectares

The area of land bounded by a line drawn from the south-western beacon of Goodwood Block eastwards along its southern boundary to beacon LE (as shown on plan in Survey Record 8346, filed in the office of the Surveyor-General, Bulawayo); thence proceeding southwards direct to the north-eastern beacon of Beeslack and along its northernmost boundary to the eastern boundary of Westgate; thence northwards along its eastern boundary to its north-eastern beacon and eastwards direct to the starting-point.

Chirumanzu district

Item 6: Mtao

Area: 8 170 hectares

The area of land bounded by a line drawn from the south-western beacon of Sandfontein generally eastwards along the southern boundary of Sandfontein, the western and southern boundaries of Mooifontein, the western and south-western boundaries of Good Hope and the south-western boundary of Aldeby, so as to exclude them, to the southernmost beacon of Aldeby, thence proceeding south-westwards and generally westwards along the boundaries of the following properties so as to exclude them: the north-western boundary of Rome of Shasha Fountains, the northern boundaries of the Remainder of Grootfontein, Railway Strip of Grootfontein and Ruben Vale of Grootfontein, the north-eastern boundary of the Remainder of Drie Hoek, the northern boundary of Railway Strip of Driek Hoek, the western boundary of Van Zyl and the northern boundaries of Sondags Fontein and Jessmint to its north-western beacon; thence north-westwards along the eastern boundaries of the following properties so as to exclude them: the Remainder of Requeza, Lot B Fairfield Siding of Requeza and Lot A Fairfield Siding to its northern-most beacon; thence generally westwards and northwards along the boundaries of the following properties so as to exclude them: the northern boundaries of Lot A Fairfield Siding, the north-eastern boundaries of Railway Strip of Murchiston and Railway Strip of Fairview and the south-eastern boundary of the Remainder of Hartebeestfontein to its eastern-most beacon; thence generally eastwards along the boundaries of

the following properties so as to exclude them: the south-western boundary of Elandsvlei and the south-western and south-eastern boundaries of Stelstand to the starting-point.

Excluded from this area is a portion of the Masvingo-Mvuma railway strip, as shown on plan VU8, filed in the offices of the Surveyor-General, Harare.

Chipinge district

Item 7: Chirindu

Area: 950 hectares

The area of land comprising the surveyed properties Subdivision A of Houtberg and Subdivision A of Mount Selinda, and approximately 92 hectares situated in the south-western corner of Subdivision A of Gungunyana.

Item 8: Gungunyana

Area: 1 650 hectares

The area of land comprising Subdivision A of Gungunyana, but excluding 92 hectares in the south-western corner, being a portion of Chirinda Forest.

Gokwe district

Item 9: Mafungabusi

Area: 82 100 hectares

The area of land bounded by a line drawn from the intersection of the Sengwa River by the Gokwe-Nkai road at map reference 35KQK052750 on the 1:50 000 map Gwehava Mission 1828B4, Edition 1; generally eastwards up that river to its commencement at map reference 35KQK203711 on the 1:50 000 map Ngondoma 1829A3, Edition 2; thence proceeding due east to a point on the Que Que-Gokwe road at map reference QK211711 on that map; thence southwards along that road to a point on the north-western boundary of the former Chemagora Purchase Land at map reference QK200605 on that map; thence south-westwards along that boundary to a point at map reference 35KQK117492 on the 1:50 000 map Wolverley 1829C1, Edition 2; thence generally westwards along a series of straight lines drawn consecutively through points at map references 35KQK087527, QK053529, PK980492 and PK900530 to a point on a road at map reference PK851530 on the 1:50 000 map Nesikwe 1828D2, Edition l; thence south-westwards along that road and its prolongation to its intersection by a road at map reference 35KPK833502 on the 1:50 000 map Kana Mission 1828D1, Edition l; thence westwards direct to the junction of a road and track at map reference PK671528 on that map; thence generally northwards along that track to a point at map reference 35KPK668560 on the 1:50 000 map Mbumbusi Confluence 1828B3, Edition l; thence down an unnamed valley to the Lutope River at map reference PK657625 on that map; thence eastwards up the Lutope River to a point at map reference PK820601 on that map; thence northwards and generally eastwards along a series of straight lines drawn consecutively through points at map references PK820650 on that map and 35KPK903668 on the 1:50 000 map Gwehava Mission 1828B4, Edition 1, to a point on the Gokwe-Nkai road at map reference QK002658 on that map; thence north-eastwards along that road to the starting-point.

Map references quoted in this description are given to the nearest hundred metres.

Item 10: Mudzongwe

Area: 1 420 hectares

The area of land bounded by a line drawn from a point at map reference 35KQL333165 on the 1:50 000 map Gowe Pools 1729C3, Edition 2, south-westwards direct to a point at map reference QL317152 on that map; thence proceeding south-westwards direct to a point at map reference QL300143 on that map; thence southwards direct to a point on the Mudzongwe River at map reference QL302133 on that map; thence up that river to a point at map reference QL290130 on that map; thence northwards direct to a point at map reference QL288138 on that map; thence westwards direct to a point at map reference QL259141 on that map; thence north-westwards direct to the southern-most beacon of Copper Queen l; thence north-eastwards along the southern boundary of that property to its eastern-most beacon; thence generally eastwards and south-eastwards along the southern boundaries of Copper Queen 2, 36, 38, 39 and 45 to the southernmost beacon of Copper Queen 45; thence north-

eastwards along the south-eastern boundary of that property to its easternmost beacon; thence eastwards direct to the starting-point.

The map references quoted in this description are given to the nearest hundred metres.

Item 11: Ungwe

Area: 567 hectares

The area of land bounded by a line drawn from the southernmost beacon of Copper Queen 62 north-eastwards along the south-eastern boundary of that property direct to a point at map reference 35KQL315264 on the 1:50 000 map Gowe Pools 172903, Edition 2; thence proceeding south-eastwards direct to a point at map reference QL320253 on that map; thence southwards direct to a point at map reference QL318244 on that map; thence south-eastwards direct to the northernmost beacon of Copper Queen 72; thence south-westwards along the north-western boundaries of Copper Queen 72 and 73 to the westernmost beacon of the latter property, thence southwards direct to a point at map reference QL312225 on that map; thence south-westwards direct to a point at map reference QL301220 on that map; thence north-westwards direct to a point on the southern boundary of Copper Queen 27 at map reference QL289229 on that map, thence north-eastwards along that boundary and its prolongation to a point at map reference QL304231 on that map; thence north-eastwards direct to a point at map reference QL308249 on that map; thence north-westwards direct to a point at map reference QL307254 on that map; thence north-westwards direct to the starting-point.

The map references quoted in this description are given to the nearest hundred metres.

Nyanga district

Item 12: Nyangu

Area: 16 600 hectares

The area of land bounded by a line drawn from Trigonometrical Beacon No. 518/S northwards direct to the south-eastern beacon of Sterkstroom and generally northwards along the eastern boundaries of the following properties, so as to exclude them: Sterkstroom, Flaknek, Doornhoek, Rhino Valley and Summershoek to the northernmost beacon of the last-mentioned property; thence proceeding northwards direct to Trigonometrical Beacon No. 35/P and northwards along the western boundary of the former property Lucan for approximately 2,61 kilometres; thence generally south-eastwards along a series of straight lines through the points set out in numerical order below and defined by the approximate co-ordinates on the Trigonometrical Survey system (Lo 33°) and from the last-mentioned of these westwards along the northern boundary of Inyanga Block to the starting-point.

Point No.	**Co-ordinates (metres)**	
	Y	X
1	26 140	1 974 840
2	24 320	1 975 530
3	23 870	1 976 110
4	21 990	1 979 110
5	19 800	1 979 700

Point No.	Co-ordinates (metres)	
6	21 610	1 981 730
7	20 450	1 982 290
8	19 750	1 984 310
17	19 950	1 992 210
18	21 850	1 994 390
19	19 460	1 995 310
20	18 180	1 997 840
21	18 150	1 999 530
Item 13: York	Area: 1 455 hectares	

The area of land comprising the surveyed property York, as described in Diagram S.G. No. 902/75.

Lupane district

Item 14: Gwaai

Area: 144 265 hectares

The area of land bounded by a line drawn from the south-western beacon of Pioneer Block East, south-eastwards along the southern boundary of that property to a point at map reference 35KPJ275779 on the 1:50 000 map Lake Alice 1928A1, Edition 1; thence proceeding south-westwards direct to the northernmost beacon of Franklands Farm and along its north-western boundary to the Umguza River; thence westwards down that river to its confluence with the Gwaai River, thence generally north-westwards down that river to the southern boundary of Gutamegwa; thence eastwards along that boundary and its prolongation to the eastern boundary of Railway Strip 244 Matupula; thence generally north-westwards along that boundary to the southern beacon of Sunbeam; thence along its south-eastern, north-eastern and north-western boundaries to the north-eastern boundary of Railway Strip 244 Matupula; thence along that boundary and the eastern boundaries of Gwaai Siding Reserve Extension and Railway Reserve Extension and Railway Reserve at Gwaai Station to the south-eastern boundary of Melrose; thence north-eastwards along that boundary to its eastern beacon; thence north-eastwards direct towards the south-western beacon of Pioneer Block East until the Bembezi River is reached; thence generally north-westwards down that river to the point where it is crossed by a road at map reference 35KNJ777964 on the 1:50 000 map Mpindo 1927B1, Edition l; thence northwards along that road to the old Bulawayo-Victoria Falls Road at map reference 35KNK815041 on the 1:50 000 map Lupane 1827D4, Edition 1; thence generally south-eastwards along that road to a point approximately 620 m from the intersection of this road and the western boundary of Subdivision A of Kenmaur of Pioneer Block East; thence 650 m parallel to western boundary of Subdivision A of Kenmaur of Pioneer Block East, thence at right angles to a position approximately 25 m

north-east of the starting point on this boundary of Subdivision A of Kenmaur of Pioneer Block East and thence southwards along that boundary to the starting point.

This description excludes the following properties: Umgusa Siding 1, Umgusa Siding 2, Railway Strip 242 Umgusa, Teakland Siding 1 and 2, Railway Strip 243 Teakland, Matupula Siding 1 and 2, and Railway Strip 244 Matupula.

Map references quoted in this description are given to the nearest hundred metres.

Item 15: Lake Alice

Area: 39 000 hectares

The area of land bounded by a line drawn from the eastern end of Hlawe Pan at map reference 35KPJ509904 on the 1:50 000 map Hlawe 1928A2, Edition 1, southwards direct to a point on the north-eastern boundary of Goodwood Block at map reference PJ510811 on that map; thence proceeding north-westwards and southwards along its north-eastern and western boundaries to its south-western beacon; thence westwards and northwards along the southern and western boundaries of Molecomb to its north-western beacon; thence north-westwards along the northern boundary of Pioneer Block East to a point at map reference 35KPJ140890 on the 1:50 000 map Lake Alice 1928A1, Edition 1; thence northwards direct to a point on the Gwampa River at map reference PJ142979 on that map; thence eastwards up that river to the western boundary of Lonely; thence southwards, eastwards, and northwards along its western, southern and eastern boundaries to the Gwampa River; thence generally eastwards up that river to the starting-point.

Map references quoted in this description are given to the nearest hundred metres.

Item 16: Ngamo

Area: 102900 hectares

The area of land bounded by a line drawn from the southern beacon of Railway Farm 31, north-eastwards along the south-eastern boundary of that farm to its eastern beacon; thence proceeding direct to the southernmost beacon of Chamankanu; thence generally north-eastwards along its south-eastern boundaries to the westernmost beacon of Sotani; thence generally south-eastwards along the southern boundaries of Sotani, Volunteer Farms 82, 83, 95 and 96 to the north-western beacon of Volunteer Farm 97; thence south-westwards and eastwards along its western and southern boundaries to the Gwai River; thence generally southwards up that river to its confluence with the Insuza River; thence westwards direct to the easternmost beacon of Railway Strip 250 Ingwe; thence north-westwards along the north-eastern boundaries of Railway Strip 250 Ingwe, Ngamo Tanks, Railway Strip 250 Ingwe, Ingwe Siding East, Railway Strip 249 Intundhla South, Intundhla Siding Reserve and Railway Strip 248 Intundhla North to the starting-point.

Chimanimani district

Item 17: Chisengu

Area: 4 006 hectares

The area of land bounded by a line drawn from a point at map reference 36KVP889023 on the 1:50 000 map Melsetter 1932D4 and 1933C1/C3 south-eastwards direct to the north-western beacon of Tilbury and south-westwards and south-eastwards along its western boundaries, so as to exclude it, to its south-western beacon; thence proceeding in a south-westerly direction to the south-eastern beacon of Springvale and north-eastwards and generally westwards along the eastern and north-eastern boundaries of Springvale and the northern boundary of Umsanza of Springvale, so as to exclude them, to the northernmost beacon of Umsanza; thence

northwards along the eastern boundaries of State Land (formerly Boskat Rand) and Tweelingspruit, so as to exclude them, to the north-eastern beacon of the latter and north-eastwards direct to the starting point.

The map reference quoted in this description is given to the nearest hundred metres.

Item 18: Glencoe

Area: 2050 hectares

The area of land bounded by a line drawn from the easternmost beacon of Mermaids Grotto south-eastwards direct to a point at map reference 36KVN936880 on the 1:50 000 map Junction Gate 2032B2 and 2033A1; thence proceeding generally westwards along the northern boundary of Ngorima Tribal Trust Land, so as to exclude it, to the south-eastern beacon of Stronachavie; thence north-westwards and generally eastwards along the eastern boundary of Stronachavie and the southern boundary of Mermaids Grotto to the starting-point.

The map reference quoted in this description is given to the nearest hundred metres.

Item 19: Lionhills

Area: 2 747 hectares

The area of land bounded by a line drawn from a point at map reference 36KVP912071 on the 1:50 000 map Melsetter 1932D4 and 1933Cl/C3 eastwards along the southern boundary of Welgelegen, so as to exclude it, to the northern beacon of Dunstan; thence proceeding southwards along the western boundary of Dunstan, so as to exclude it, to its southernmost beacon; thence generally north-westwards and south-westwards along the northern boundary of Chisengu Forest Land to the north-eastern beacon of Tweelingspruit; thence northwards and north-eastwards along the eastern boundaries of Nyhodi and Lot 1 of Nyhodi, the southern boundaries of Greenmount, Belmont and Belmont Valley, so as to exclude them, to the starting-point.

The map reference quoted in this description is given to the nearest hundred metres.

Item 20: Martin (i)

Area: 600 hectares

The area of land bounded by a line drawn from boundary-pillar 64 on the Zimbabwe-Mozambique international boundary, north-eastwards along that boundary to its intersection by an undefined line (as shown on plan RN58, filed in the office of the Surveyor-General, Harare); thence proceeding southwards along that undefined line to a point on an unnamed river at map reference 36KVP949217 on the 1:50 000 map Cashel 1932D2, Edition 1, and generally northwards along a series of straight lines through points at map references VP940223 and VP938235 on that map, to the starting-point.

Map references quoted in this description are given to the nearest hundred metres.

Martin (ii)

Area: 4 400 hectares

The area of land bounded by a line drawn from the intersection of the eastern boundary of Jantia by the Musapa River and down that river to its intersection by an undefined line (as shown on plan RN58, filed in the office of the Surveyor-General, Salisbury); thence proceeding southwards along that undefined line to its intersection by the northern boundary of Vooruitzicht and generally westwards along the northern boundaries of Vooruitzicht, Lindley East of Lindley and Lindley North Estate, so as to exclude them, to a point on the northern boundary of Lindley North Estate at map reference 36KVP893133 on the 1:50 000 map Melsetter 1932D4 and 1933C1/C3, Edition 1; thence generally northwards along a series of straight lines through points at map references VP894136, VP892140, VP894145, VP900147, VP899150, VP900151, VP900153, VP896152, VP889155 and

VP885157 to the south-eastern beacon of Umsapa of Jameson and northwards along the eastern boundaries of Umsapa of Jameson and Remainder of Jantia to the starting-point.

Map references quoted in this description are given to the nearest hundred metres.

Item 21: Mudima

Area: 6 355 hectares

An area of land bounded by a line drawn from Boundary Beacon 52B on the Mozambique-Zimbabwe international boundary, generally eastwards and southwards along this international boundary to the north-eastern beacon of Diepfontein, thence westwards and south-westwards along the northern and north-western boundaries of Diepfontein, so as to exclude it, to its south-western beacon; thence generally south-westwards along the eastern and southern boundaries of the former property Lusthof Ranch (as shown on S.G. Diagram No. 482/64, filed in the office of the Surveyor-General, Harare) so as to include it, to its southernmost beacon; thence northwards along the eastern boundaries of Athene Estate and the former property Ostend (as shown on general plan DG 673, filed in the office of the: Surveyor-General, Harare), so as to exclude them, to the Umvumvumvu River; thence down this river to the eastern boundary of the Remainder of Thabanchu and generally northwards along the boundaries of the following properties, so as to exclude them: the eastern boundary of the Remainder of Thabanchu, the southern, eastern and northern boundaries of Lot 1 of Mudima of Thabanchu and the eastern and northern boundaries of the Remainder of Thabanchu to its north-western beacon; thence generally north-eastwards along the north-western boundaries of the former properties Kent of Steyns Stroom and Subdivision A of Steyns Stroom (as shown on general plan EG 238, filed in the office of the Surveyor-General, Harare), so as to include them to the starting-point.

The following properties are excluded from this description:

(1) Thabanchu Police Camp Site of Thabanchu.

(2) Lot 2 of Mudima of Thabanchu.

as shown on S.G. Diagram 1422/77 filed in the office of the Surveyor-General, Harare.

Item 22: Nyambewa

Area: 5 484 hectares

An area of land bounded by a line drawn from Boundary Beacon 50A on the Mozambique-Zimbabwe international boundary, generally southwards and eastwards along this international boundary to Boundary Beacon 52B; thence generally westwards along the boundaries of the following properties, so as to exclude them: the north-western boundaries of the former properties subdivision A of Steyns Stroom and Kent of Steyns Stroom (as shown on general plan EG 238, filed in the office of the Surveyor-General, Harare), the northern boundary of East Penkridge of Penkridge and the north-eastern and north-western boundaries of the former property Lot 1 of Madagascar (as shown on S.G. Diagram No. 2740/63, filed in the office of the Surveyor-General, Harare) to the southernmost beacon of Uitsig A; thence generally northwards and north-eastwards along the south-western, western and north-western boundaries of Uitsig A, so as to include it, to its northernmost beacon and eastwards direct to the starting-point.

Item 23: Tandai

Area: 5 450 hectares

An area of land bounded by a line drawn from the southernmost beacon of Diepfontein, generally southwards along the Mozambique-Zimbabwe international boundary to Boundary Beacon 58D and generally north-westwards and northwards along the boundaries of the following properties, so as to exclude them: the northern boundaries of Tank Nek of Moodies Nek of Hendriksdal and the Remainder of Moodies Nek of Hendriksdal, the eastern and north-eastern boundaries of Pietershoek A and the eastern boundary of Quaggas Hoek to the north-western beacon of Athene Estate; thence north-eastwards and southwards along the northern and eastern boundaries of Athene Estate, so as to include it, to the southernmost beacon of the former property Lusthof Ranch; thence generally eastwards along the boundaries of the following properties so as to exclude them: the southern and eastern boundaries of the former property Lusthof Ranch (as shown on S.G. Diagram No.

482/64, filed in the office of the Surveyor-General, Harare) and the south-western boundary of Diepfontein to the starting-point.

The following properties are excluded from this description: Lot 1 of Johannes Rust, School Site A of Johannes Rust and School Site B of Vergadering.

Item 24: Tarka

Area: 4 343 hectares

The area of land bounded by a line drawn from the south-western beacon of Tilbury generally eastwards along its southern boundary, so as to exclude it, to its south-eastern beacon; thence proceeding direct to the eastern beacon of Hayfield B and north-westwards and south-westwards along its northern and western boundaries, so as to exclude it, to its south-western beacon; thence westwards along the northern boundary of Ngorima Tribal Trust Land to the eastern beacon of Glencoe Forest Land; thence north-westwards along the eastern boundary of that forest land, so as to exclude it, to the eastern beacon of Mermaids Grotto; thence north-westwards along its eastern boundary and north-eastwards along the southern boundary of Chisengu Forest Land, so as to exclude them, to the starting-point.

Nkayi district

Item 25: Gwampa

Area: 47 000 hectares

The area of land bounded by a line drawn from a point on the Gwampa River at map reference 35KPJ992752 on the 1:50 000 map Nkai 1928B2, Edition 1, southwards direct to a point on the north-western boundary of The Kenilworth Block at map reference 35KQJ000699 on the 1:50 000 map Kenilworth 1928B4, Edition l; thence proceeding south-westwards along its north-western boundary to its western beacon; thence north-westwards along the north-eastern boundaries of Gourlays Block and Goodwood Block to a point on the north-eastern boundary of Goodwood Block at map reference 35KPJ510811 on the 1:50 000 map Hlawe 1928A2, Edition 1; thence northwards direct to a point on the Gwampa River at map reference PJ509904 on that map; thence up that river to the starting-point.

Map references quoted in this description are given to the nearest hundred metres.

Nyamandhlovu district

Item 26: Chesa

Area: 14 250 hectares

The area of land bounded by a line drawn from the south-western beacon of Compensation, eastwards along the southern boundaries of Compensation and Bongolo to the south-eastern beacon of Bongolo; thence proceeding northwards along its eastern boundary to the southern beacon of Caithness; thence south-eastwards along the southern boundary of Imvani to its south-eastern beacon; thence southwards along the western boundaries of Samunya and Badminton Block to the northern beacon of Mandau; thence south-westwards along its northern boundary to its western beacon; thence north-westwards along the north-eastern boundaries of Naseby South, Naseby North, Stanhope South, Stanhope North, Lonsdale and Bantu to the starting-point.

Item 27: Inseze

Area: 35 200 hectares

The area of land bounded by a line drawn from the intersection of the Umgusa River by the eastern boundary of Pelera, up that river to the western boundary of Buda A; thence proceeding south-westwards along that boundary and the northern and western boundaries of Bushy Park to the Insezi River; thence south-eastwards up that river to the western boundary of Seafield Estate; thence south-westwards along its western boundary to the eastern beacon of Teakdale; thence north-westwards along the northern boundaries of Teakdale and Woodlands to the northern beacon of Woodlands; thence southwards along its western boundary to the Gwai River; thence generally northwards down that river to its confluence with the Insezi River; thence up that river to the south-eastern boundary of Frys Farm; thence north-eastwards along that boundary to the western beacon of Pelera;

thence south-eastwards and northwards along its western, southern and eastern boundaries to the starting-point.

Item 28: Inseze Extension

Area: 8 400 hectares

The area of land bounded by a line drawn from the western beacon of Seafield Valley, south-eastwards along its south-western boundary to its southern beacon; thence proceeding south-westwards along the western boundaries of Greater Norfolk and Drysdale to the Khami River; thence down that river to the eastern boundary of Seafield Estate and north-eastwards along that boundary to the starting-point.

Item 29: Umgusa

Area: 32 200 hectares

The area of land bounded by a line drawn from the easternmost beacon of Grants Farm south-eastwards direct to the south-western beacon of The Eland Block; thence proceeding south-eastwards along the southern boundaries of The Eland Block and Spring Block to the northern beacon of Mindoro; thence south-westwards along its north-western boundary to the eastern beacon of Dalmeny; thence generally westwards along its north-eastern boundary, the north-eastern and north-western boundaries of Aberelwyn and the north-eastern and north-western boundaries of Inverell and Irrira to the Umgusa River; thence generally north-westwards down that river to the south-eastern boundary of Grants Farm and north-eastwards along its south-eastern boundary to the starting-point.

This description excludes the following properties:

Sawmills Railway Strip 1, Sawmills Railway Strip 2, Sawmills Station Reserve, Sawmills Triangle Site and Sawmills Water Right.

Item 30: Umzibani

Area: 2 471 hectares

The area of land comprising the surveyed property Umzibani.

Mutare district

Item 31: Banti

Area: 2 219 hectares

The area of land comprising the properties Banti North and Banti South.

Item 32: Stapleford

Area: 24 600 hectares

The area of land bounded by a line drawn from boundary-pillar 4 on the Zimbabwe-Moçambique international boundary, generally southwards and westwards along that boundary to the south-eastern beacon of Strathmore; thence proceeding generally north-eastwards along the boundaries of the following properties, so as to exclude them: the eastern boundary of Strathmore, the southern, eastern and northern boundaries of Lambton, the north-western boundary of Harris Ville, the north-eastern boundary of Walmer, the south-eastern boundary of Simla and the south-eastern and north-eastern boundaries of Charity to the northernmost beacon of the last-mentioned property; thence generally eastwards and north-eastwards along the southern boundaries of Mutasa North Tribal Trust Land, so as to exclude it, to the starting-point.

Hwange district

Item 33: Fuller

Area: 23 300 hectares

The area of land bounded by a line drawn from the south-western beacon of Ursula Estate eastwards along its southern boundary to the new Bulawayo-Victoria Falls road at map reference 35KLL767081 on the 1:50 000 map

Victoria Falls Airport 1825B2; thence proceeding south-eastwards along that road to a point at map reference LK936920 on that map; thence generally eastwards along the southern boundaries of Wankie Tribal Trust Land to the south-western boundary of Holfontein; thence south-eastwards along that boundary to its southernmost beacon; thence southwards direct to the north-eastern beacon of Hillcrest and along its northern boundary to the northernmost beacon of Masekari and along its north-western boundary and the northern boundary of Zutphen to the north-western beacon of the lastmentioned and southwards along its western boundary to the point where it is intersected by the prolongation eastwards of the northern boundary of The Pause; thence westwards along that prolongation and the northern and north-western boundaries of The Pause to i ts westernmost beacon; thence generally westwards along the northern boundaries of Matetsi River Ranch and Kalala to the northern boundary of Railway Strip 284, Dibangombie; thence north-westwards along that boundary to the eastern boundary of Waterford and along its eastern, northern and western boundaries to the north-eastern boundary of Railway Strip 285, Mubiya; thence generally north-westwards along the north-eastern boundary of Railway Strip 285, Mubiya, to the eastern boundary of Woodlands Estate B; thence northwards and westwards along its eastern and northern boundaries to the south-eastern beacon of lot 4 of Nakavango and northwards along the eastern boundaries of Lots 4, 3, 2 and 1 of Nakavango to the starting-point.

This description excludes the following areas of land—

(a) the Victoria Falls Aerodrome Reserve, as show on plan XVF/22/1120, filed in the office of the Director of Civil Aviation, Harare; and

(b) the property Mubiya Siding.

Map references quoted in this description are given to the nearest 100 metres.

Item 34: Kazuma

Area: 24 000 hectares

The area of land bounded by a line drawn from the south-western beacon of Matentwa, eastwards along the southern boundaries of Matentwa and The Sanctuary to the Kasetsheti River and down that river to the north-western boundary of Sisuma; thence proceeding generally southwards along its western boundaries to its southernmost beacon; thence generally south-westwards along the western boundaries of Gideon, Mazabeni, By-and-By and Border Ranch to the Zimbabwe-Botswana international boundary; thence generally north-westwards along that boundary to boundary-pillar 708; thence north-eastwards direct to a point at map reference 35KLK515732 on the 1:50 000 map Kazuma Depression 1825B3 A4, Edition l; thence south-eastwards at right angles to that line to a point at map reference LK541709 on that map on a straight line joining boundary-pillar 703 of the Zimbabwe-Botswana international boundary and the south-western beacon of Matentwa; thence north-eastwards along that line to the starting-point.

Map references quoted in this description are given to the nearest hundred metres.

Item 35: Mvutu

Area: 2 100 hectares

The area of land bounded by a line drawn from a point on the Bulawayo-Victoria Falls road at map reference 35KLK892937 on the 1:50 000 map Victoria Falls Airport 1825B2, Edition 1, north-eastwards along the boundary of Wankie Tribal Trust Land to a point at map reference LK908979 on that map; thence proceeding south-eastwards along its boundary to a point at map reference 35KLK951963 on the 1:50 000 map Lukunguni 1826A1, published 1965; thence south-westwards along its boundary to a point on the Bulawayo-Victoria Falls road at map reference 35KLK936920 on the 1:50 000 map Victoria Falls Airport 1825B2, Edition l; thence generally north-westwards along that road to the starting-point.

Map references quoted in this description are given to the nearest hundred metres.

Item 36: Panda-Masuie

Area: 33 500 hectares

The area of land bounded by a line drawn from a point on the western boundary of Deka-Falls Railway Strip 3 at map reference 35KLL676051 on the 1:50 000 map Myila 1825Bl, Edition 1, southwards along that boundary to the northernmost beacon of France; thence proceeding south-westwards along its northern and western boundaries

and the western boundary of Woodlands to its south-western beacon; thence eastwards along its southern boundaries to the north-western beacon of Utopia; thence south-westwards along the north-western boundaries of Utopia and Riviera to the north-western beacon of Riviera; thence south-westwards direct to a point at map reference LK524852 on that map; thence south-westwards direct to a point at map reference 35KLK396832 on the 1:50 000 map Stoffels Pan 1825A2, Edition l; thence north-westwards direct to a point at map reference LK365888 on that map; thence north-eastwards direct to a point at map reference LK411921 on that map; thence north-westwards direct to a point at map reference LK400937 on that map; thence north-eastwards direct to a point at map reference 35KLK510972 on the 1:50 000 map Myila 1825Bl, Edition l; thence north-eastwards direct to a point at map reference LL576045 on that map; thence north-eastwards direct to the southern boundary of Zambezi National Park at map reference LL585050 on that map; thence eastwards along that boundary to the starting-point.

Map references quoted in this description are given to the nearest hundred metres.

Item 37: Sikumi

Area: 54 400 hectares

The area of land bounded by a line drawn from the intersection of Bulawayo-Victoria Falls road by a game-fence at map reference 35KMK985507 on the 1:50 000 map Dett 1826D2, provisional print dated 1978, south-eastwards along that game-fence to a point at map reference 35KNK075436 on the 1:50 000 map Malindi 1827Cl, Edition l; thence proceeding north-eastwards direct to beacon E9 (bn) of Lot 2 of Dett Valley (as shown on Diagram S.G. No. 105/64 filed in the office of the Surveyor-General, Bulawayo); thence along the boundaries of the following properties so as to exclude them: the north-western boundary of Lot 2 of Dett Valley, the western boundaries of Lot 1 of Dett Valley, the south-western boundary of Good Luck Ranch, the southern boundary of Carl Lisa, the western and southern boundaries of Sikumi Estate, the southern boundary of Lugo Ranch and the south-western boundary of Chamankanu to its southern beacon; thence south-westwards direct to the eastern beacon of Railway Farm 31; thence generally north-westwards along its north-eastern and north-western boundaries to the northern boundary of Railway Strip 230 Mukwa; thence north-westwards along the northern boundaries of that property and Railway Strip 231 Kennedy to the northern beacon of Annex Antoinette of Railway Farm 33; thence along its south-eastern and north-eastern boundaries, the north-eastern boundaries of Antoinette and Railway Farm 35 and the north-western boundary of Railway Farm 35 to the northern boundary of Railway Strip 232 Isilwana; thence along the northern boundaries of Railway Strip 232 Isilwana and Railway Strip 235 Malindi to the south-eastern boundary of Railway Farm 37; thence along that boundary and its north-eastern and north-western boundaries to the northern boundary of Railway Strip 235 Malindi; thence along that boundary and the eastern, northern and western boundaries of Railway Reserve at Malindi Station and the northern boundary of Railway Strip 234 Impofu to the southern beacon of Railway Farm 39; thence along its south-eastern and north-eastern boundaries to its northern beacon; thence northwards direct to the southern beacon of Wankie National Park Airport Reserve at map reference 35KMK991389 on the 1:50 000 map Dett 1826D2, Edition 1; thence north-eastwards along the southern boundary of that reserve to a point at map reference 35KNK047411 on the 1:50 000 map Malindi 1827C1, Edition 1; thence north-westwards along the eastern boundary of that reserve direct to a point at map reference NKO42424 on that map; thence south-westwards along a game-fence to the eastern beacon of Railway Farm 41; thence along the north-eastern and north-western boundaries of Railway Farm 41 to the northern boundary of Railway Strip 233 Dett; thence north-westwards along that boundary to the south-eastern boundary of Dett Township Reserve; thence along the south-eastern and north-eastern boundaries of Dett Township Reserve, the north-eastern boundaries of Dett African Township and Dett Township Reserve to the south-eastern boundary of Last Hope Estate; thence north-eastwards along that boundary and the south-eastern boundary of Nazareth Ranch to its intersection by a game-fence at map reference 35KMIC872447 on the 1:50 000 map Dett 1826D2, provisional print dated 1978; thence north-eastwards along that game-fence to a point at map reference MK897499 on that map; thence eastwards along that game-fence to the starting-point.

Map references quoted in this description are given to the nearest hundred metres.

Total extent: 917 152 hectares

Part II – Demarcated forests on Rhodes estates

Nyanga district

Item 1: Erin

Area: 10 700 hectares

The area of land bounded by a line drawn from a point on the north-western boundary of Bideford at map reference 36KVQ742762 on the 1:50 000 map Inyangani 1832B4/1833A3, Edition 1, south-eastwards direct to a point on the north-eastern boundary of Bideford at map reference VQ761757 on that map; thence proceeding southwards along its north-western boundary to its easternmost beacon and south-westwards direct to a point at map reference VQ753715 on that map; thence southwards direct to a point at map reference VQ741662 on that map; thence southwards, south-westwards, north-westwards and north-eastwards along the boundaries of the following properties, so as to include them: the eastern, south-eastern, south-western and north-western boundaries of Erin and the north-western boundaries of Placefell and Bideford to the starting-point.

Map references quoted in this description are given to the nearest hundred metres.

Item 2: Sauerdale North

Area: 214 hectares

The area of land bounded by a line drawn from a point A on the northern boundary of Sauerdale Block at map reference 35KPH6715-6285 on the 1:50 000 map Bulawayo 2028B1, Edition 3, southwards to a point B at map reference 6715-6235 on that map, thence eastwards to a point C at map reference 6765-6235 on that map; thence southwards through a point D at map reference 6760 -6210 to a point E at map reference 6770-6135 on that map; thence westwards to a point F at map reference 6725-6135 on that map; thence southwards to a point G at map reference 6725-6080 on that map, thence westwards to a point H on the eastern edge of the old Gwanda Road at map reference 6660-6075 on that map; thence following that road edge northwards through a point J at map reference 6630-6205 to a point K at map reference 6625-6250 on that map; thence eastwards to a point L at map reference 6645-6250 on that map, thence northwards to a point M on the northern boundary of Sauerdale Block at map reference 6645 -6285 on that map; thence eastwards along that boundary to the starting-point.

The map references quoted in this description are given to the nearest fifty metres.

Total extent: 10 914 hectares

Part III – Land owned by the Commission

Gweru district

Item 1: Remainder of Area: 0,267 4 hectares

Messengers' Camp,

Gweru Townlands

The area of land as shown on Diagram S.G. No. 245/29, filed in the office of the Surveyor-General, Bulawayo.

Item 2: Remainder of Area: 1,238 3 hectares

Stand 1297A Gweru Township

The area of land as shown on Diagram S.G. No. 8648/57, filed in the office of the Surveyor-General, Bulawayo.

Item 3: Remainder of Area: 3,941 hectares

Stand 1299 Gweru Township Lands

The area of land as shown on Diagram S.G. No. 4288/51, filed in the office of the Surveyor-General, Bulawayo.

Item 4: Stand 626,Area: 0,302 8 hectares

Gwelo Township of Stand 1003, Gweru Township

The area of land shown on Diagram S.G. No. 128/47, filed in the office of the Surveyor-General, Bulawayo.

Chimanimani district

Item 5: Remainder ofArea: 704,899 hectares

Springvale

The area of land as shown on Diagram S.G. No. 399/1901, filed in the office of the Surveyor-General, Harare.

Item 6: Stand 25 Mel-Area: 0,349 2 hectares

setter Township

The area of land as shown on Diagram S.G. No. 2664/51, filed in the office of the Surveyor-General, Harare.

Item 7: Stand 240Area: 0,069 6 hectares

Melsetter Township

The area of land as shown on General Diagram No. 4441, filed in the office of the Surveyor-General, Harare.

Harare district

Item 8: Stand 647Area: 32,946 9 hectares

Highlands Estate

The area of land as shown on Diagram S.G. No. 834/77, filed in the office of the Surveyor-General, Harare.

Item 9: Lot 4 of Lot 16AArea: 0,396 5 hectares

of Rietfontein

The area of land as shown on Diagram S.G. 3788/57, filed in the offices of the Surveyor-General, Harare.

Item 10: Lot 1 of Sub-Area: 4 047 Square

division D of Kings-metres

mead of Sub-division A

of Section 3, Borrowdale Estate

The area of land is shown on Diagram S.G. No. 75/72, filed in the offices of the Surveyor-General, Harare.

Mutare district

Item 11: MusangoArea: 20,489 1 hectares

Remainder Nyabara of Lot 12 of Imbeza Valley

The area of land as shown on Diagram S.G. No. 1836/1947, filed in the office of the Surveyor-General, Harare.

Item 12: Stand 2523,Area: 10,565 7 hectares

Mutare Township of Mutare Lands Township

The area of land as shown on Diagram S.G. No. 90/70, filed in the office of the Surveyor-General, Harare.

Item 13: Toronto Estate Area: 27,713 hectares

The area of land shown on Diagram S.G. No. 241/83, filed in the offices of the Surveyor-General, Harare.

Item 14: Remainder ofArea: 24,562 7 hectares

Meole Brace East of Alphaeton

The area of land shown on Diagram.S.G. No. 953/52, filed in the office of the Surveyor-General, Harare.

Item 15: Stand 2345,Area: 0,320 3 hectares

Umtali Township of Umtali Township Lands

The area of land shown on Diagram S.G. No. 5375/52, filed in the office of the Surveyor-General, Harare.

Bulawayo district

Item 16: Remainder ofArea: 830 square metres

Stand 337, Bulawayo Township

The area of land shown on Diagram S.G. No. 1665/1895, filed in the office of the Surveyor-General, Bulawayo.

Item 17: Lots 1 and 2 ofArea: 13,116 3 hectares

Azalea

The areas of land shown on Diagram S.G. 2041/58 and S.G. 2042/58, filed in the office of the Surveyor-General, Harare.

Total extent: 841 hectares